

EBTSL

ESSAR BULK TERMINAL SALAYA LIMITED

**EPC TENDER FOR
DEVELOPMENT OF LIQUID
MARINE TERMINAL FACILITIES,
PIPELINES & TANKAGES
AT SALAYA, INDIA**

GENERAL TERMS AND CONDITIONS



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GENERAL TERMS & CONDITIONS **FOR CONSTRUCTION** **CONTRACTS**

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ARTICLE - I

DEFINITIONS

The following definitions shall apply to this CONTRACT, except where the context otherwise requires. Words importing the singular include the plural and vice versa where the context requires:

1.1 ACCEPTANCE OF WORK

ACCEPTANCE OF WORK shall mean acceptance by EMPLOYER of WORK by issuing a written notification as provided for in subarticle 13.1 (i).

1.2 APPROVAL - APPROVED

APPROVAL - APPROVED shall mean approved in writing.

1.3 CHANGE IN WORK

CHANGE IN WORK shall mean any modification, amendment or addition to, or alteration in, or deletion from WORK in accordance with Article 11. But change in quantities of work in the items shall not constitute a CHANGE IN WORK.

1.4 COMPLEX

COMPLEX shall mean the entire site, including the JOB SITE where the WORK is to be carried out, areas designated by the EMPLOYER for erection of CONTRACTOR's temporary facilities and accommodation and all adjacent areas under the OWNER's control to which the CONTRACTOR may have access.

1.5 CONSTRUCTION EQUIPMENT

CONSTRUCTION EQUIPMENT shall mean any lifting equipment, transport or earth moving and other equipment, watercraft, tools, implements, temporary works, temporary JOBSITE buildings, sanitary facilities, office supplies, office equipment, consumables and such other items as are required for the execution of WORK but shall not include MATERIALS.

1.6 CONTRACT

CONTRACT shall mean the contract between EMPLOYER and CONTRACTOR, as furthermore described in the form of CONTRACT.

1.7 CONTRACTOR

CONTRACTOR shall mean such person(s) firm(s) or company(ies) as the EMPLOYER shall select for the performance of the WORKS, and shall include its heirs, executors, successors and permitted assignees.

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1.8 CONTRACTOR SUPPLIED MATERIALS

CONTRACTOR SUPPLIED MATERIALS shall mean those MATERIALS not being FREE-ISSUE MATERIALS, supplied or to be supplied to EMPLOYER by CONTRACTOR under the CONTRACT.

1.9 CONTRACT PRICE

CONTRACT PRICE shall mean the total of the amounts due to CONTRACTOR pursuant to part “D” of the CONTRACT, subject to such additions thereto or deductions therefrom as may be made under the provisions contained in the CONTRACT documents.

1.10 DEMOBILISATION DATE

DEMOBILISATION DATE shall mean the date on which all property of CONTRACTOR and his SUB-CONTRACTORS has been removed from the JOBSITE and all employees, servants, agents and representatives of CONTRACTOR and his SUBCONTRACTORS have departed therefrom.

1.11 ENGINEER-IN-CHARGE

ENGINEER-IN-CHARGE shall mean the Construction Supervisor assigned by the PMC/ EMPLOYER, responsible for the day to day supervision of the CONTRACTOR performing the WORK required under this CONTRACT.

1.12 FREE-ISSUE MATERIALS

FREE-ISSUE MATERIALS shall mean those MATERIALS supplied or to be supplied to CONTRACTOR by EMPLOYER.

1.13 GENERAL CONDITIONS/G.C.C.

GENERAL CONDITIONS shall mean these “General Terms and Conditions applicable to Construction CONTRACTs”.

1.14 JOBSITE

JOBSITE shall mean the site(s) where the Project is to be realised, and such additional areas as may be allocated by EMPLOYER for storage of material by CONTRACTOR or for temporary use by CONTRACTOR and SUBCONTRACTOR.

1.15 MATERIALS

MATERIALS shall mean any machinery, equipment, materials, consumables and other items (including the initial and capital spare parts testing equipment and special tools) incorporated or intended to be incorporated in the PROJECT under the CONTRACT.

1.16 NORMAL WORKING HOURS

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NORMAL WORKING HOURS shall mean the normal working hours in force for the project team of EMPLOYER for day work.

1.17 **NES**

NES shall mean Nominated Engineering Subcontractor, which shall include any nominated representative (as applicable) of EBTSL who are responsible for the Construction Supervision of WORK designed by them.

1.18 **OWNER**

OWNER shall mean ESSAR BULK TERMINAL SALAYA LIMITED, a company incorporated under the Companies Act, 1956, and having its registered office at 44 KM Stone, Jamnagar-Okha Highway, Post Box No. 07, Taluka: Khambhaliya, Dist: Devbhoomi Dwarka - 361305, India, which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors, executors and permitted assignees.

1.19 **EMPLOYER**

EMPLOYER shall mean ESSAR BULK TERMINAL SALAYA LIMITED, a company incorporated under the Companies Act, 1956, and having its registered office at 44 KM Stone, Jamnagar-Okha Highway, Post Box No. 07, Taluka: Khambhaliya, Dist: Devbhoomi Dwarka - 361305, India,, who is floating the tender for EPC work, which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors, executors and permitted assignees.

1.20 **PROJECT MANAGEMENT CONSULTANT**

Project Management Consultant shall mean the company in its capacity designated by the OWNER as for the realization of the PROJECT pursuant to Article 2 hereof.

1.21 **PROJECT**

PROJECT shall mean the **EPC SERVICES FOR LIQUID MARINE TERMINAL, ASSOCIATED PIPING AND TANKAGES** to be implemented by the OWNER at Salaya.

1.22 **SPECIAL CONDITIONS**

SPECIAL CONDITIONS shall mean the conditions as set forth in part “B” of the CONTRACT.

1.23 **SUBCONTRACT**

SUBCONTRACT shall mean any contract with a SUBCONTRACTOR.

1.24 **SUBCONTRACTOR**

SUBCONTRACTOR shall mean any person or company (other than EMPLOYER, CONTRACTOR, NES and PMC), having a CONTRACT for the performance of any part of the

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WORK, with the consent in writing of the EMPLOYER and will include the legal representatives, successors, and permitted assigns of such persons, firm or company.

1.25 SURPLUS MATERIAL

SURPLUS MATERIAL shall mean CONTRACTOR SUPPLIED MATERIALS, found to be surplus upon ACCEPTANCE OF WORK with the exception of the spare parts.

1.26 WORK

WORK shall mean all work to be performed by CONTRACTOR, including CONTRACTOR SUPPLIED MATERIALS to be supplied for part(s) of the PROJECT insofar as the necessity therefore is specified in, or is to be inferred from the CONTRACT.

1.27 WORKS

WORKS shall mean that part of the PROJECT worked upon by CONTRACTOR and covered by CONTRACTOR'S WORK.

ARTICLE 2

PROJECT MANAGEMENT CONSULTANT'S AUTHORITY

The OWNER has appointed PMC to render Project Management Services for effective supervision in respect of construction, commissioning and start-up of the PROJECT. For the purposes of this CONTRACT PMC shall provide the above services to the EMPLOYER with full authority to make and receive communications and introduce procedures, to make decisions, and to take all other steps and do all other things which EMPLOYER is entitled or bound to do hereunder, save obligations to make or receive payments of money. Accordingly, CONTRACTOR is entitled and bound to accept, implement and maintain any and all instructions, directives and guidelines given, issued or advised by the ENGINEER-IN-CHARGE as being given, issued or advised on behalf of EMPLOYER and to direct to ENGINEER-IN-CHARGE any communication and to tender to ENGINEER-IN-CHARGE receipt thereof shall constitute receipt by EMPLOYER. EMPLOYER however has the right to remove and replace ENGINEER-IN-CHARGE and/or exercise the powers of ENGINEER-IN-CHARGE itself under the CONTRACT.

ARTICLE 3

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CONTRACT

- 3.1 The conclusion of the CONTRACT shall only be evidenced by the formal CONTRACT signed jointly by the EMPLOYER and CONTRACTOR. CONTRACTOR shall not derive any rights from oral arrangements.
- 3.2 The signed CONTRACT shall include as agreement on non-judicial stamp paper purchased from the State of Gujarat / Maharashtra of appropriate value. The GENERAL CONDITIONS are binding and supersede and replace any of CONTRACTOR'S selling terms and shall form an integral part of the CONTRACT.

All terms and conditions in, or attached to CONTRACTOR's quotation are hereby expressly declared null and void unless specifically included and spelled out in the CONTRACT.

No other agreement or understanding, purporting to modify or change terms, conditions or specifications of the CONTRACT shall be binding unless it has been agreed upon in writing between EMPLOYER and CONTRACTOR.

- 3.3 By signing the CONTRACT, CONTRACTOR accepts as binding the conditions of the CONTRACT.
- 3.4 The documents / power of attorney authorising the signatory for signing shall be furnished by the CONTRACTOR.

ARTICLE 4

WORK

- 4.1 The WORK shall consist of all matters, necessary for the realization of the WORKS, such as, but not limited to, the items specified in the CONTRACT and more specifically of the WORKS in part "C" thereof.

The quantities of various items of work to be done under the CONTRACT are approximate. The EMPLOYER reserves the right to increase or decrease the contracted quantities or replace specifications, drawing or design of any or every item or delete them at any stage of work.

The CONTRACTOR shall make no claim for anticipated profits, for loss or profit or for damages or any compensation because no work is ordered under certain items or because of a difference between the quantities of various types of work to be done and that actually done.

The quantities of work stated in the CONTRACT schedule are approximate and payment shall be made as per actual measurements. The CONTRACTOR is not entitled to any compensation towards works and material /procured/stored in excess of the measured quantities. Where the erection of equipment, vessels and structural steel are involved, the basis of such measurements and progress evaluation shall be weights specified in the shipping documents or invoices or drawing as decided by EMPLOYER/ ENGINEER-IN-CHARGE.

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Detailed measurement of the work carried out shall be submitted by the CONTRACTOR to the ENGINEER-IN-CHARGE at every stage of work before proceeding to the next stage of work as per procedure laid down and payment shall be made as per the measured quantities subject to their conforming to the quantities ordered as per drawing/ schedules and I.S. codes and not as per CONTRACT schedule quantities.

- 4.2 CONTRACTOR shall ensure that SUBCONTRACTS incorporate adequate provisions to ensure that CONTRACTOR can fulfill his obligations under the CONTRACT.
- 4.3 The WORK shall be in accordance with the provisions of the CONTRACT and shall :
- a. be performed with due diligence and efficiency,
 - b. be free from faults and defects,
 - c. be in accordance with sound principles and practices in the Power Plant,
 - d. show first class skill and workmanship
- 4.4 CONTRACTOR shall arrange that any rights and titles, including intellectual and property rights (together with the obligations connected therewith) relating to WORK which CONTRACTOR or any SUBCONTRACTOR may acquire vis-à-vis third parties can, if so required by EMPLOYER, be assigned to EMPLOYER in any of the events referred to in Articles 20 and 21.
- 4.5 CONTRACTOR shall gather all information necessary for him to fulfill his obligations in accordance with the CONTRACT, including but not limited to information as to the character of the WORK, local conditions and facilities, the situation at the JOBSITE, weather conditions, conditions of labour, wage standards, safety requirements, environmental and industrial matters.
- 4.6 For the purpose of the execution of the PROJECT, EMPLOYER shall make the JOBSITE available, permit access thereto and grant free use thereof.

Such free use shall be subject always to compliance by CONTRACTOR with OWNER'S mandatory Power operation regulations, including but not limited to, fire alarms, gas alarm and the "permit" system. However, EMPLOYER reserves the right to admit at all times other CONTRACTORS to the JOBSITE.

CONTRACTOR shall acquire all information required from such other CONTRACTORS working at the JOBSITE which could affect the execution of WORK. Where relevant, in view of the nature of WORK or any part thereof, CONTRACTOR shall ensure proper coordination with other CONTRACTORS and shall keep ENGINEER-IN-CHARGE timely informed how such coordination is intended to be implemented.

- 4.7 CONTRACTOR shall not in any way be relieved from any obligation under the CONTRACT (nor shall it be entitled to extra compensation) should any information whether obtained from EMPLOYER (whether or not contained in the documents comprising the CONTRACT) or otherwise be incorrect and/or insufficient.

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- 4.8 Should any work be required applying normal engineering, procurement, manufacturing, testing and/or construction practice, which has been omitted from the documents comprising the CONTRACT but is necessary for the purposes for which the CONTRACT is intended, CONTRACTOR understands such is implied and shall perform all such work as is implied herein. It shall be the responsibility of CONTRACTOR alone to notify ENGINEER-IN-CHARGE of any discrepancies in the specifications or drawings and to obtain interpretation and/or decisions on any questions that may arise as to the intent of these documents.
- 4.9 Any approval, consent, instruction, comment, advice and the like given to CONTRACTOR under the CONTRACT (or not given, as the case may be) by EMPLOYER shall not relieve CONTRACTOR from any obligation under the CONTRACT.
- 4.10 CONTRACTOR shall ensure that WORK shall be performed in such a manner as will safeguard and protect EMPLOYER'S interests and take all necessary and proper steps to prevent abuse or uneconomical use of facilities made available to CONTRACTOR.
- 4.11 Upon the completion of the WORK, in accordance with the terms of the CONTRACT, all SURPLUS MATERIALS and all CONSTRUCTION EQUIPMENT shall immediately be removed from the JOBSITE, unless otherwise agreed between EMPLOYER and CONTRACTOR, all in accordance with those requirements set out in the CONTRACT, to the extent EMPLOYER wishes to retain any or all of the SURPLUS MATERIALS on terms and conditions to be agreed upon.
- 4.12 CONTRACTOR shall be obliged to safeguard the WORKS, the FREE-ISSUE MATERIALS, CONTRACTOR SUPPLIED MATERIALS, CONSTRUCTION EQUIPMENT and/or other things owned by or in the custody or control of CONTRACTOR, his personnel, SUBCONTRACTORS or any person associated with the WORK or the personnel of such a person.
- 4.13 If EMPLOYER has reason to believe that CONTRACTOR is not fulfilling or may not for any reason whatsoever, including insolvency, fulfill in a proper manner his obligations under the CONTRACT, EMPLOYER may require additional security from CONTRACTOR for the proper fulfillment of those obligations.
- 4.14 When requested by EMPLOYER, CONTRACTOR shall prepare all documents required by EMPLOYER for developing customs procedures and obtaining licenses and permits pursuant to Article 25.

ARTICLE 5

HOUSEKEEPING

- 5.1 Good Housekeeping shall be maintained at all times.
- 5.2 CONTRACTOR shall work in a clean and orderly fashion and shall be responsible for maintenance and cleaning of his assigned part of the JOBSITE. With a view to this CONTRACTOR shall provide for containers, in which rubbish must be deposited.

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The containers shall be emptied by CONTRACTOR at regular intervals as required with a minimum of once per week in a designated and acceptable way in conformance with the relevant laws and governmental regulations.

- 5.3 EMPLOYER has the right to demand a general cleanup of the JOBSITE when CONTRACTOR does not comply with the cleaning instructions as requested.

For such general site cleanup the cleaning crew of CONTRACTOR will be at the disposal of EMPLOYER without additional compensation. Alternatively, EMPLOYER may have the cleanup performed by another party and backcharge CONTRACTOR for his cost.

- 5.4 Burning of waste is not allowed at the JOBSITE without the written permission of the EMPLOYER.

- 5.5 At completion of WORK, CONTRACTOR shall leave his temporary facility area "broom clean".

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ARTICLE 6

PROGRESS SCHEDULE OF CONTRACTOR'S WORK AND LIQUIDATED DAMAGES

- 6.1 The progress of the WORK shall be in compliance with the requirements specified in the CONTRACT and CONTRACTOR shall ensure that the WORK shall be completed on or before the date stated in the CONTRACT.

Time is the essence of the CONTRACT. Any delay in completion of the WORK beyond specified schedule for any reasons other than force majeure, or reason specifically attributed to EMPLOYER, PMC or ENGINEER-IN-CHARGE shall result in compensation by way of Liquidated Damages @ 1% of CONTRACT price per week of delay subject to a maximum of 10% of the CONTRACT price. Similarly, delay if any, in the implementation of intermediate milestone shall also attract compensation by way of Liquidated Damages at 1% per week or part thereof, of the prorata CONTRACT price accrued until the completion of the said milestone subject to a maximum of 10% of the prorata CONTRACT price.

In case the work is expected to be delayed beyond the due date of completion and the CONTRACTOR fails to mobilise additional resources adequately, the EMPLOYER shall have the right to engage any other agency and get the work completed at the risk and cost of CONTRACTOR.

- 6.2 Unless otherwise agreed upon, CONTRACTOR shall, within two weeks after execution of the CONTRACT, submit for APPROVAL to ENGINEER-IN-CHARGE a detailed schedule, which will show the order in which CONTRACTOR proposes to carry out the WORK and the starting dates and estimated end dates for the various parts of the WORK.

This schedule shall be based upon the overall project schedule and other pertinent information provided by ENGINEER-IN-CHARGE and show that completion of the WORK will be achieved in accordance with the terms of the CONTRACT.

In the preparation of the schedule, CONTRACTOR, shall take into consideration other activities that are performed concurrently on the JOBSITE by others.

Schedule shall also indicate the requirements of FREE-ISSUE MATERIAL.

- 6.3 On request of ENGINEER-IN-CHARGE, CONTRACTOR shall provide further detailed schedules per area or work disciplines.
- 6.4 When APPROVAL for a schedule is obtained from ENGINEER-IN-CHARGE the schedule shall be binding upon CONTRACTOR to the dates of completion of the several parts of the WORK stated in the schedule. The submission to and APPROVAL by ENGINEER-IN-CHARGE of the schedule shall not relieve CONTRACTOR of his responsibilities under the CONTRACT.
- 6.5 The schedule may be altered

In the case of CHANGE IN WORK on the basis of Article 11.

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- ✓ In case of suspension of the WORK as provided for in Article 22.
- ✓ In the event of force majeure as provided for in Article 23.

6.6 The schedules submitted by CONTRACTOR shall be revised, if required by EMPLOYER, to reflect actual conditions and/or requirements of ENGINEER-IN-CHARGE, but such revision in no way relieves CONTRACTOR of his obligations under the CONTRACT. CONTRACTOR is not entitled to additional payment for the consequences of revisions to the schedule.

6.7 If any work by EMPLOYER's forces or other CONTRACTORS employed by EMPLOYER is conducted on JOBSITE or contiguous to JOBSITE, ENGINEER-IN-CHARGE will coordinate such work with CONTRACTOR'S activities as necessary to promote general harmony.

The presence of other CONTRACTORS shall not relieve CONTRACTOR from any of his obligations under the CONTRACT or derive from this circumstances any right to additional compensation.

6.8 It is CONTRACTOR'S responsibility to expedite progress of WORK, including the timely supply of CONTRACTOR supplied materials which under the CONTRACT are the responsibility of CONTRACTOR.

6.9 If progress on items of WORK falls behind schedule, or if progress is not being maintained on items of WORK, which would become critical if no action were taken, then and in each such case CONTRACTOR shall at his initiative and for his own account take wherever possible, measures to eliminate delay in or, in cases where the delay cannot be eliminated, mitigate the effect on completion of the WORK in accordance with the requirements of subarticle 6.1. CONTRACTOR is not entitled to additional payment on account of such measures.

Such measures shall consist of working after normal working hours and/or shift work and/or employing additional equipment, labor and/or supervision and/or all further or different measures as may be necessary to eliminate or mitigate delay.

CONTRACTOR shall obtain ENGINEER-IN-CHARGE's approval on such measures, which approval shall not unreasonably be withheld, whereafter CONTRACTOR shall forthwith implement these.

6.10 Should CONTRACTOR fail to take, at his own initiative, measures as aforesaid in subarticle 6.9 above, or should ENGINEER-IN-CHARGE or EMPLOYER not approve the measures proposed by CONTRACTOR, then EMPLOYER shall have the right to require CONTRACTOR to, and CONTRACTOR shall for his own account forthwith implement such of the measures referred to in subarticle 6.9 as EMPLOYER deems necessary and EMPLOYER shall have the right to engage for CONTRACTOR'S account the services of others or to perform WORK itself in order to achieve compliance with the schedule referred to above.

The provisions of this Article 6.10 and 6.9 hereinabove, shall not, however dilute the provisions of penalty/ liquidated damages in the event of ultimate delay as specified in the Article 6.1 above.

6.11 CONTRACTOR shall advise EMPLOYER in writing as soon as any factor arises which, in CONTRACTOR'S opinion, is likely to have an effect on the completion requirements referred to

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in subarticle 6.1, but in no event later than three (3) working days after the factor affecting the completion requirements took place.

Such advice shall not be construed as a discharge of any of CONTRACTOR'S obligations under the CONTRACT.

No application for extension of time will be considered which does not comply with the above requirements nor for any delays which may be set against any period of float or which do not effect the critical path of the schedule of the CONTRACT.

ARTICLE 7

CONTRACTOR, SUBCONTRACTOR AND THEIR PERSONNEL

- 7.1 The CONTRACTOR shall not assign SUBCONTRACT or sublet the whole or any part of the WORK in any manner without the prior written approval of the ENGINEER-IN-CHARGE.

Each SUBCONTRACT shall be covered by a contract on the same terms as between EMPLOYER and CONTRACTOR, provided however, that notwithstanding approval of the SUBCONTRACT as aforesaid and notwithstanding that the EMPLOYER shall have received a copy of the contract between CONTRACTOR and SUBCONTRACTOR, the CONTRACTOR shall be and remain exclusively responsible to the EMPLOYER for the due and proper performance of the CONTRACT and SUBCONTRACTOR shall for all purposes vis-à-vis the EMPLOYER be deemed to be servant/agent of CONTRACTOR employed for the performance of the particular work with full responsibility on CONTRACTOR for all acts, omissions and defaults of the SUBCONTRACTOR and any rights that EMPLOYER may separately have or reserve against SUBCONTRACTOR under the CONTRACT shall be without prejudice to the foregoing.

CONTRACTOR shall act as an independent CONTRACTOR with respect to WORK, and neither CONTRACTOR nor any SUBCONTRACTOR nor the employees, agents, representatives and servants of either shall be deemed to be the employees, agents, representatives or servants of EMPLOYER.

- 7.2 CONTRACTOR shall at all times ensure that WORK is carried out by an adequate organization under the supervision of a fully qualified and authorized representative appointed by CONTRACTOR who shall be duly authorized to receive and carry out instructions required or permitted under the CONTRACT to be given to the CONTRACTOR by ENGINEER-IN-CHARGE in writing. All such instructions given to, and all acts done by such representative shall be binding on the CONTRACTOR, as if such instructions were given to him or such acts had been done by him.
- 7.3 CONTRACTOR shall employ such personnel staff and labour as will always be in a number and of a competence (including carefulness, skill and experience) adequate to carry out WORK in accordance with the CONTRACT.

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Prior to the appointment of such representative(s), the CONTRACTOR shall submit to the EMPLOYER the name of the person(s) alongwith credentials intended to be appointed as his representative(s) and no appointment shall be made until the EMPLOYER has approved of the same and notified his approval in writing to the CONTRACTOR and whenever the CONTRACTOR desires to change his representative(s) the same procedure shall be followed for the appointment of new representative(s).

Should, in the opinion of EMPLOYER, at any time such personnel be inadequate and/or incompetent, then CONTRACTOR shall, without extra cost to EMPLOYER, provide additional or alternative competent personnel, and shall provide for the transport, housing and payment thereof.

- 7.4 CONTRACTOR shall endeavor to assign to the JOBSITE as far as possible those supervisors and skilled workers that have already been employed on previous projects with EMPLOYER.
- 7.5 a. CONTRACTOR shall not withdraw or replace any member of CONTRACTOR's or SUBCONTRACTORS key personnel without ENGINEER-IN-CHARGE's prior written consent.
- b. ENGINEER-IN-CHARGE shall have the right to refuse or request CONTRACTOR to refuse any member of CONTRACTOR'S personnel or any SUBCONTRACTOR or member of SUBCONTRACTOR's personnel access to the JOBSITE or to perform any part of WORK or to request CONTRACTOR to remove from the JOBSITE any such member of CONTRACTOR's and/or SUBCONTRACTOR's personnel.

CONTRACTOR shall forthwith comply with any such request and should ENGINEER-IN-CHARGE so require, forthwith replace any such member or SUBCONTRACTOR. If the replacement is due to incompetence, non compliance with EMPLOYER's rules and regulations, reprehensible behaviour and/or other good reasons, any costs incurred in connection with such replacement shall be for CONTRACTOR's account.

- 7.6 CONTRACTOR shall have complete control of the personnel engaged in the performance of WORK and shall ensure that all such personnel, including all SUBCONTRACTORS and their personnel shall comply with EMPLOYER's prevailing rules and regulations.
- 7.7 CONTRACTOR shall maintain and shall ensure that SUBCONTRACTOR shall maintain good industrial relations and CONTRACTOR shall ensure that EMPLOYER's interests in matters related to employee relations, including but not limited to rates of pay, allowances, amenities, overtime, disciplines and grievance procedures shall not be prejudiced. CONTRACTOR shall, to the extent necessary, inform and consult ENGINEER-IN-CHARGE on such matters on his own initiative and in any case when EMPLOYER so desires.

CONTRACTOR shall likewise maintain and shall ensure that any SUBCONTRACTOR shall maintain goodwill among the various regulatory bodies and with the General Public and if necessary shall consult ENGINEER-IN-CHARGE in this respect.

- 7.8 CONTRACTOR shall not be entitled to enter into a SUBCONTRACT for the performance of the whole of the WORK, but shall, after having obtained prior written approval from ENGINEER-IN-CHARGE from case to case, have the right to enter into SUBCONTRACTS for the performance of parts of the WORK.

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- 7.9 CONTRACTOR shall not be relieved from any obligation under the CONTRACT by entering into SUBCONTRACTS and CONTRACTOR shall be responsible for the acts, defaults and neglects of any of his SUBCONTRACTORS, his employees, agents, representatives, servants or workmen as fully as if they were the acts, defaults or neglects of CONTRACTOR.
- 7.10 No SUBCONTRACT shall bind or purport to bind EMPLOYER and each SUBCONTRACT shall provide for the possibility of immediate termination in the event of discontinuation or termination of the CONTRACT as referred to in Articles 20 and 21 respectively.
- 7.11 Members of CONTRACTOR'S and of SUBCONTRACTOR's personnel shall only have access to the JOBSITE if they are in possession of an approved pass. CONTRACTOR should consult with ENGINEER-IN-CHARGE on this matter before assigning his personnel. The pass shall not give any entitlement to access if access is not necessary for the performance of the WORK. Upon the completion of the work, passes made in the name of the CONTRACTORS personnel shall be returned to the EMPLOYER by the CONTRACTOR.
- 7.12 Third parties who are not members of CONTRACTOR's personnel and who are to have access to the JOBSITE in connection with the WORK, may, on the request of a person charged with this task by CONTRACTOR, be admitted to the JOBSITE. EMPLOYER shall be entitled to refuse admission to the above mentioned third parties or to attach conditions to their admission.
- 7.13 EMPLOYER'S time clerks shall be entitled to make regular counts of CONTRACTOR'S personnel on the JOBSITE, in which counts CONTRACTOR shall cooperate. CONTRACTOR shall also be bound to cooperate in all other reasonable administrative arrangements adopted or to be adopted by EMPLOYER and instructed by ENGINEER-IN-CHARGE with regard to the keeping of a check on the labour force employed on the JOBSITE, for example by supplying a daily statement (including names) of his labour force in and outside the JOBSITE, broken down according to the various types of work being carried out.
- 7.14 During the execution of WORK at site if the CONTRACTOR engages SUBCONTRACTORS for execution of WORK as approved with CONTRACT provisions and in the event of a SUBCONTRACTOR complaining in writing to the EMPLOYER with regard to non-payment of their dues from the CONTRACTOR for materials or equipment supplied by them or the WORK executed by them, EMPLOYER reserves the right to make such payments to the SUBCONTRACTOR that are legitimate and payable based on approved measurements and with due notice to the CONTRACTOR. EMPLOYER shall release such payments on behalf of CONTRACTOR to SUBCONTRACTOR to ensure smooth execution of WORK at site. A procedure in this regard shall be mutually agreed. The payments, such as above, made to SUBCONTRACTORS shall be recovered from monies due to CONTRACTOR.

ARTICLE 8

MATERIALS

- 8.1 Without prejudice to CONTRACTOR's other obligations with respect to CONTRACTOR SUPPLIED MATERIALS, CONTRACTOR shall ensure that all CONTRACTOR SUPPLIED MATERIALS, shall be new, unused, of correct design and workmanship, within the

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specifications, or if no such specification exists, fully suitable for the use intended and shall be guaranteed for a minimum period of 12 months from the date of completion of the WORK.

8.2 Unless otherwise stipulated in the CONTRACT, all CONTRACTOR SUPPLIED MATERIALS shall be purchased and transported to and on the JOBSITE by CONTRACTOR at his own expense.

8.3 FREE ISSUE MATERIALS :

EMPLOYER reserves the right to issue the materials listed in Special Conditions of Contract, free of cost to the CONTRACTOR for incorporating in the works. If the EMPLOYER selects to issue the said material free of cost to the CONTRACTOR (FREE ISSUE MATERIALS), then the following terms and conditions will apply :

8.3.1 CONTRACTOR and EMPLOYER shall agree in advance on the quantities of FREE-ISSUE MATERIALS made available for the execution of WORK. CONTRACTOR shall guarantee that the FREE-ISSUE MATERIALS made available to it shall be used as economically as possible. FREE ISSUE MATERIAL shall be used only for permanent works. No FREE ISSUE MATERIAL shall be used for making temporary structures, platforms, templates, etc.

8.3.2 CONTRACTOR shall confirm the delivery and/or receipt of FREE-ISSUE MATERIALS. If EMPLOYER, at any time, requests the return of FREE-ISSUE MATERIALS, CONTRACTOR shall immediately comply with such request.

CONTRACTOR shall be responsible, at his own cost, for receiving, unloading and handling FREE-ISSUE MATERIALS that are so delivered, including the transportation, unloading and handling of any part of such items to any other location where the WORK is to be executed.

CONTRACTOR shall check and visually inspect all FREE-ISSUE MATERIALS and supporting documentation. CONTRACTOR shall notify EMPLOYER in writing of any discrepancy or damage to FREE-ISSUE MATERIALS within three (3) working days of receipt. In the absence of such notification, FREE-ISSUE MATERIALS shall be deemed to have been delivered in a complete and undamaged state and any discrepancy or damage that could have reasonably been discovered by CONTRACTOR pursuant to this article shall be to the account of CONTRACTOR.

Without prejudice to Article 14, CONTRACTOR shall at his own expense take good care of FREE-ISSUE MATERIALS, CONTRACTOR shall place all FREE-ISSUE MATERIALS and CONTRACTOR SUPPLIED MATERIAL under cover, if so required by EMPLOYER or construct adequate storehouses when necessary in EMPLOYER'S opinion for the proper protection thereof and take all reasonable measures of protection against theft, fire and other hazards.

8.3.3 Notwithstanding the provisions of sub-article 4.11 CONTRACTOR shall return at cost all surplus FREE-ISSUE MATERIALS to such place on EMPLOYER'S premises which is designated as part of the JOBSITE for that purpose by EMPLOYER and perform the administrative operations required therefore by EMPLOYER.

The CONTRACTOR shall keep proper account of use of all the FREE-ISSUE MATERIAL and reconcile the same as per the procedure specified in SPECIAL CONDITIONS of CONTRACT.

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- 8.3.4 If during the execution of WORK it transpires that the quantity or quality of any FREE ISSUE MATERIALS is inadequate for the execution of the WORK, EMPLOYER shall be notified in writing of this by CONTRACTOR within five (5) working days after the event has become or could have been known to CONTRACTOR.

If CONTRACTOR fails to make such written notification, any delay in execution of WORK and any cost resulting from such delays shall be borne by CONTRACTOR. Such a delay shall not be regarded as force majeure for CONTRACTOR. If a shortage of FREE ISSUE MATERIALS is the result of careless, inefficient and/or uneconomical use thereof by CONTRACTOR, the cost of additional FREE-ISSUE MATERIALS shall be borne by CONTRACTOR.

In the event CONTRACTOR provides timely notification, the procedure for extension of work schedule shall be strictly in accordance with the "SPECIAL CONDITIONS OF CONTRACT".

- 8.3.5 Superfluous or rejected CONTRACTOR SUPPLIED MATERIALS shall be removed by CONTRACTOR from the JOBSITE at his expense, the first time that he is called upon to do so by EMPLOYER.
- 8.3.6 The CONTRACTOR shall not sell, or otherwise dispose of, or remove, except for the purpose of the WORKS, any sand, stone, clay, ballast, earth, rock or other substances of material which may be obtained from any excavation made in or upon the JOBSITE at the time of obtaining the delivery or possession thereof and all such substances, materials, buildings and produce shall be, and shall continue to be, the property of the EMPLOYER, provided that the CONTRACTOR may, with the permission of the EMPLOYER, use the same for the purposes of the WORKS either free of cost or at such cost as may be determined by the EMPLOYER.

ARTICLE 9

CONSTRUCTION EQUIPMENT AND FACILITIES

- 9.1 Unless otherwise stipulated in the CONTRACT, CONTRACTOR shall be responsible for providing at his expense all CONSTRUCTION EQUIPMENT.
- 9.2 Unless stipulated otherwise in the CONTRACT, CONTRACTOR shall himself carry out the hoisting activities necessary for the execution of the WORK at his own expense and risk.
- 9.3 CONSTRUCTION EQUIPMENT may be used only if they satisfy the relevant statutory provisions and any additional requirements set by EMPLOYER.

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If the said requirements are not met, or in doubtful cases, EMPLOYER shall be entitled to forbid the use thereof, and CONTRACTOR shall be bound to remove the CONSTRUCTION EQUIPMENT concerned from the JOBSITE and to replace them as soon as possible by CONSTRUCTION EQUIPMENT that do meet those requirements. Any delay in the execution of WORK arising as a result shall be the responsibility of CONTRACTOR and shall not be regarded as force majeure for CONTRACTOR. Inspection of CONSTRUCTION EQUIPMENT by EMPLOYER shall not relieve CONTRACTOR of any liability arising out of the use thereof.

- 9.4 Unless stipulated otherwise in the CONTRACT, CONTRACTOR shall be responsible for providing at his expense office, stores, labour camp, bachelors accommodation, workshop, fabrication yard, washing, changing, canteen, toilet and such other facilities for his personnel. The huts and/or caravans and/or office barracks for this purpose shall meet the statutory regulations and EMPLOYER's requirements as regards fire precaution and hygienic conditions. EMPLOYER shall provide only land for these purposes. Space shall also be made available to the CONTRACTOR for his site activities, equipment lay-down area, temporary office shed, etc.
- 9.4.1 CONTRACTOR shall construct the site office for their use wherein they will temporarily accommodate EMPLOYER'S Inspectors and Engineers when they visit their work with chair, table, racks and cupboard for keeping records. Watch & Ward of their works at Fabrication & Erection Yards, Stores, Office, Materials, etc. shall be done by CONTRACTOR at their own source and cost.
- 9.5 The office barracks, huts and/or caravans referred to in subarticle 9.4 must be delivered and erected at CONTRACTOR's expense at places to be designated for that purpose by EMPLOYER. EMPLOYER will provide only water at one point for use by CONTRACTOR at a rate specified in Special Conditions of CONTRACT. CONTRACTOR shall arrange distribution at his own cost. CONTRACTOR has to make his own arrangements for Diesel Generating sets, for electrical power required by him. EMPLOYER may provide diesel at one point on chargeable basis .
- 9.5.1 As regards the construction water, CONTRACTOR shall make arrangements at his own cost and initiative, provide suitable pumping installation and pipe network for distribution at CONTRACTOR's place of work. Such installation pipes and other equipment shall be laid out/installed by the CONTRACTOR only with the prior approval of the ENGINEER-IN-CHARGE so as not to interfere with the layout and progress of other construction work at site and access to or about the job site.
- 9.5.2 CONTRACTOR shall make arrangement for distribution of Power to the CONTRACTOR's works at the site and other places at their own source and cost. Sources aforesaid and the work related thereto shall be made/performed/installed in conformity with Indian Electricity Regulation and shall be subject to approval of Electrical Inspector of Gujarat.

The EMPLOYER may without notice or specifying any cause suspend or discontinue water supply to the CONTRACTOR and such suspension or discontinuation shall not entitle the CONTRACTOR to any compensation or damages or constitute a basis for extension of time for completion.

Water supplied by the EMPLOYER to the CONTRACTOR shall be entirely at the risk of the CONTRACTOR as to the continuity and regularity of supply and maintenance and adequacy of

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pressure without any warranty by or liability to the EMPLOYER in respect thereof and without entitlement to the CONTRACTOR on grounds of discontinuance, irregularity, drop or rise in pressure or other cause whatsoever to claim from EMPLOYER in respect thereof and the consequences thereof.

CONTRACTOR shall furthermore obtain a written permit from EMPLOYER for all such facilities. CONTRACTOR shall clearly indicate the name and telephone number of his firm on each of his huts and/or caravans and/or office barracks.

If and when EMPLOYER deems this to be necessary, CONTRACTOR shall at his own cost vacate the place designated by EMPLOYER.

- 9.6 It shall be possible to lock the office barracks, huts and/or caravans.

EMPLOYERS shall have no obligation of any kind with regard to the guarding of the office barracks, huts and/or caravans.

- 9.7 Upon completion of WORK, CONTRACTOR shall at his own expense immediately, remove the office barracks, huts and/or caravans from the JOBSITE forthwith, and written permits issued for the huts and/or caravans shall be returned to EMPLOYER.

- 9.8. The provisions of Article 5 with respect to HOUSEKEEPING shall apply equally to temporary construction and storage facilities and accommodation areas established by the CONTRACTOR.

ARTICLE 10

WORKING HOURS

- 10.1 Unless otherwise stipulated in the CONTRACT, CONTRACTOR may execute WORK solely during NORMAL WORKING HOURS. If any collective labour agreement or wage arrangement binding on CONTRACTOR contains a provision pursuant to which WORK during part of NORMAL WORKING HOURS is regarded as overtime for his personnel, CONTRACTOR shall notify EMPLOYER thereof before conclusion of the CONTRACT.
- 10.2 Any part of WORK outside NORMAL WORKING HOURS may be performed solely with the prior consent of EMPLOYER.
- 10.3 If any part of WORK has to be performed outside NORMAL WORKING HOURS, in order to be able to meet the completion date specified in the CONTRACT, the resultant extra costs shall be borne by CONTRACTOR.

ARTICLE 11

CHANGES IN WORK

- 11.1 EMPLOYER shall have the right at any time to order CHANGES IN WORK.

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For any CHANGE IN WORK whether contemplated by EMPLOYER or by CONTRACTOR, CONTRACTOR shall submit his proposal in accordance with the applicable procedures.

Any such CONTRACTOR's proposal shall contain a written statement specifying :

- a. Any effect such CHANGE IN WORK may have on any provision of the CONTRACT, in particular on the prices referred to in part "D" (Schedule of Rates) of the CONTRACT and/or time schedule.
- b. Such other details as EMPLOYER may require.

For any CHANGE IN WORK, CONTRACTOR's proposal as aforesaid shall be submitted as soon as possible, but not later than seven (7) working days after receipt of the request to provide such proposals, unless otherwise agreed.

On approval in writing by ENGINEER-IN-CHARGE of CONTRACTOR's proposal as aforesaid, the CHANGE IN WORK in question shall be deemed to be incorporated in WORK. No CHANGE IN WORK shall be commenced by CONTRACTOR without ENGINEER-IN-CHARGE's approval as aforesaid.

- 11.2 If CONTRACTOR fails to submit the proposal referred to in subarticle 11.1 within the time specified or in case of failure to reach agreement on the increase or decrease in the CONTRACT PRICE and time schedule and/or any other amendment of the CONTRACT, ENGINEER-IN-CHARGE shall have the right to instruct CONTRACTOR to carry out the CHANGE IN WORK and CONTRACTOR shall carry out the CHANGE IN WORK as instructed.
- 11.3 No CHANGE IN WORK shall affect any of the CONTRACTORS responsibilities and obligations under the CONTRACT unless the EMPLOYER has been notified within seven (7) days of the receipt of the CHANGE IN WORK, wherein upon responsibilities and obligations shall be modified as may be justified.
- 11.4 Any work to be performed by CONTRACTOR resulting from comments given by EMPLOYER, PMC or NES on documents or work performed by CONTRACTOR to meet the agreed requirements shall not be considered as a CHANGE IN WORK and shall be carried out at CONTRACTOR's own expense.

ARTICLE 12

EXAMINATION

- 12.1 EMPLOYER or his designates shall have the right at any time to examine the WORK during his performance and to reject any item of WORK found to be not in accordance with the requirements of the CONTRACT.

No such examination or rejection shall relieve CONTRACTOR of any of his obligations and/or liabilities under the CONTRACT.

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12.2 Any work to be performed or action to be taken by CONTRACTOR resulting from examination or rejection as referred to in subarticle 12.1 shall not be regarded as CHANGE IN WORK and shall be carried out at CONTRACTOR's own expense.

12.3 In case EMPLOYER's approval of documents is required, construction work and/or fabrication of the CONTRACTOR SUPPLIED MATERIALS shall not be started before CONTRACTOR's relevant documents have been approved. Such approval shall not relieve CONTRACTOR of his obligations to deliver the CONTRACTOR SUPPLIED MATERIALS on time.

12.4 EMPLOYER has the right to waive inspection at point of manufacture without prejudice to EMPLOYER's right to inspect the CONTRACTOR SUPPLIED MATERIALS at destination.

12.5 if rejected, CONTRACTOR SUPPLIED MATERIALS will be returned for credit or replacement at CONTRACTOR'S risk and expense.

If rejected at destination CONTRACTOR will pay all handling and transportation charges both ways.

Payment of the CONTRACTOR SUPPLIED MATERIALS does not constitute acceptance of WORK.

12.6 Any cost for inspection tests such as mechanical, electrical, chemical, hydrostatic NDT and laboratory tests are for CONTRACTOR's account, as well as personal expenses for third party inspectors, such as cost for travel, living and salaries, unless specified otherwise in the CONTRACT.

12.7 Any additional inspection cost whether by third parties or by EMPLOYER due to CONTRACTOR's non-compliance with the CONTRACT are for CONTRACTOR's account.

12.8 Should CONTRACTOR SUPPLIED MATERIALS be dispatched prior to receipt of the release note or the inspection waiver, EMPLOYER reserves the right to return the CONTRACTOR SUPPLIED MATERIALS to CONTRACTOR's works at CONTRACTOR's risk and account.

12.9 EMPLOYER reserves the right to carry out additional tests on CONTRACTOR SUPPLIED MATERIAL with "test certificates" at EMPLOYER's cost. However, during testing if the material fails to meet the SPECIFICATIONS, the replacement as well as the cost of testing shall be to the CONTRACTOR's account.

12.9.1 The CONTRACTOR shall furnish to the ENGINEER-IN-CHARGE for approval when requested, or as required by the specifications or other CONTRACT documents, adequate samples of all materials and finishes intended for incorporation in the works, such samples to be submitted before the work is commenced permitting sufficient time for test or examination thereof by the EMPLOYER. All materials furnished and finishes incorporated in the work shall conform to the approved sample(s) in all respects.

12.9.2 The ENGINEER-IN-CHARGE shall be entitled to reject at any time any defective material, item or component (including specially manufactured or fabricated items and components) supplied by the CONTRACTOR for incorporation in the works notwithstanding previous inspection and or testing thereof by or on behalf of the EMPLOYER without rejection and notwithstanding

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previous approval thereof by or on behalf of the EMPLOYER (the decision of the ENGINEER-IN-CHARGE as to any defect as aforesaid being final and binding upon the CONTRACTOR), and upon such rejection the CONTRACTOR shall either perform such work or improvement thereon or in respect thereof as shall be necessary to bring the material item or component to the requisite standard, or shall if so required by the ENGINEER-IN-CHARGE (whose decision in this behalf shall be final) remove the rejected material/ item/ component from the job site within the time specified by the ENGINEER-IN-CHARGE (whose decision shall be final) and replace it at his own cost and expense (without additional remuneration or compensation in respect thereof) with materials, item or component approved by the ENGINEER-IN-CHARGE.

12.10 INSPECTION AND TESTING OF WORKS

12.10.1 The CONTRACTOR shall at all times ensure highest standards of workmanship relative to the work to the satisfaction of the ENGINEER-IN-CHARGE. The ENGINEER-IN-CHARGE shall have power to inspect the work in all respects at any and all times up to completion of the work as also to test or instruct the CONTRACTOR, to test the works or any structure, material or component thereof at the risks and cost of the CONTRACTOR, either by the CONTRACTOR or any agency(ies) nominated by the ENGINEER-IN-CHARGE in this behalf.

12.10.2 The CONTRACTOR shall provide all facilities, instruments, material/labour and accommodation required for testing the works (including checking the setting out of the works) and shall afford the ENGINEER-IN-CHARGE all assistance necessary to conduct the tests.

12.10.3 The CONTRACTOR shall also provide and keep at all times during the progress of the work and maintenance period, proper means of access to the works and every part thereof by means of ladders, gangways, etc. and the necessary attendance to move and set up the same as directed by the ENGINEER-IN-CHARGE for inspection or measurement of the works.

12.10.4 On no account shall the CONTRACTOR proceed with concreting or other work in foundations and in superstructure by covering up or otherwise placing beyond reach of inspection or measurement any work before necessary inspection entries are filled in the site inspection register by the ENGINEER-IN-CHARGE. Should the CONTRACTOR do so, the same shall be uncovered at CONTRACTOR'S risk and expense for carrying out the inspection and measurement.

12.10.5 Should the CONTRACTOR fail to comply with any of the provisions foregoing relative to inspection and/or testing of the works, the ENGINEER-IN-CHARGE shall in his absolute discretion be entitled to remove, dismantle or uncover as the case may be, at the risk and cost of CONTRACTOR for test and examination any structure, material or component thereof installed, erected or put up by the CONTRACTOR and to conduct or have conducted the test(s) or examination at the risk and costs of replacement, reinstallation or re-erection of the concerned structure, material or component, as the case may be.

12.10.6 Notwithstanding anything provided in the foregoing clauses hereof, the CONTRACTOR shall be and remain liable at his own cost and initiative to conduct all tests at all relevant times during supply, erection and installation of any works, structure, material or component as shall be required in terms of the CONTRACT Documents or as directed by the ENGINEER-IN-CHARGE. Such tests to be conducted through agency(ies) or laboratory(ies) specified or approved by the ENGINEER-IN-CHARGE in this behalf.

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- 12.10.7 Should the ENGINEER-IN-CHARGE on inspection or test be not satisfied with the quality or workmanship of any work, structure, material or component (the decision of the ENGINEER-IN-CHARGE being final and binding on CONTRACTOR in this behalf), the CONTRACTOR shall re-perform, replace, reinstall and/or re-erect, as the case may be, such work, structure, material or component and no such rejected work structure, material or item or component shall be reused with reference to the work except with the prior permission of the ENGINEER-IN-CHARGE, and the provisions of Clause 12.10.9 shall apply to default by the CONTRACTOR of the provisions of this clause.
- 12.10.8 Notwithstanding anything provided in foregoing clauses hereof and notwithstanding that the ENGINEER-IN-CHARGE has inspected, tested and/or approved any particular work, structure, material or component, such inspection, test or approval shall not absolve CONTRACTOR of his full responsibility under the CONTRACT inclusive of and relative to specification fulfillment and performance guarantees the said inspection and test procedure being intended basically for satisfaction of EMPLOYER that prima facie the erection done and/or material and equipment supplied for incorporation in the work is in order.
- 12.10.9 Should the CONTRACTOR fail to re-perform, replace, re-install and/or re-erect, as the case may be, any work, structure, material or component rejected or found defective in terms of clause 12.10.7 hereof within such period as the ENGINEER-IN-CHARGE may specify by written notice to the CONTRACTOR in this behalf, the CONTRACTOR shall be deemed to be in breach of CONTRACT within the provisions of Article 20 hereof with regard to termination of CONTRACT and associated provisions thereunder and the EMPLOYER shall be entitled (without prejudice to any other right or remedy available to the EMPLOYER) upon expiry of the period specified in said notice, demolish and/or remove the rejected/ defective work, structure, material or component and re-perform, replace, re-install and/or re-erect, as the case may be, the same by itself or through other agency or other contractor at the risks and costs of the CONTRACTOR in all respect and recover the costs incurred by the EMPLOYER in this behalf together with a supervision charge of 15% (fifteen percent) thereon admissible to the EMPLOYER, and the EMPLOYER shall be entitled (without prejudice to any other mode of recovery) to deduct the same from the Running Account/Final Bill(s) of the CONTRACTOR any monies becoming due to the CONTRACTOR from time to time and decision of the EMPLOYER as to the costs incurred by the EMPLOYER as aforesaid shall be final and binding upon the CONTRACTOR.

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ARTICLE 13

STARTUP, PERFORMANCE TEST RUNS AND ACCEPTANCE OF CONTRACTOR'S WORK

- 13.1 CONTRACTOR shall notify ENGINEER-IN-CHARGE in writing when CONTRACTOR considers that WORK has been completed in accordance with the CONTRACT.

Within thirty (30) calendar days after the date of receipt by ENGINEER-IN-CHARGE of such written notification, ENGINEER-IN-CHARGE shall inform CONTRACTOR in writing either that :

- (i) ENGINEER-IN-CHARGE agrees with CONTRACTOR's written notification referred to in this subarticle 13.1, or
- (ii) ENGINEER-IN-CHARGE disagrees with CONTRACTOR's written notification as aforesaid, giving reasons.

In the latter event, CONTRACTOR shall immediately for his own account take all action necessary to complete WORK in accordance with the CONTRACT so as to enable ENGINEER-IN-CHARGE to issue the written notification referred to under (i) of this subarticle 13.1.

- 13.2 Without prejudice to the generality of the definition of WORK it is understood and agreed that also for the purpose of subarticle 13.1(i), this definition will include all preparatory work prior to start-up, as well as all work and services during start-up and performance test runs with respect of WORK in accordance with the CONTRACT.
- 13.3 Any assumption by ENGINEER-IN-CHARGE of responsibility for normal maintenance of the WORKS or any part thereof and the carrying out of start-up, and performance test runs, all as specified in the CONTRACT, shall not be construed as a limitation of CONTRACTOR's obligations under Articles 12, 14, 15 and 17.
- 13.4 If during any performance test run WORK or any part thereof fails to meet the requirements set forth in the CONTRACT, ENGINEER-IN-CHARGE shall immediately notify CONTRACTOR thereof in writing, and CONTRACTOR shall, in consultation with ENGINEER-IN-CHARGE, take all actions necessary to remedy such failure, within agreed and schedule whereupon WORK or the relevant part thereof, shall again be subject to a performance test run on the terms and conditions set forth in the CONTRACT.
- 13.5 EMPLOYER shall be entitled, before the WORK is completed, to take WORK or a completed or non completed part thereof into use, or to have it taken into use. if the taking into use demands more of CONTRACTOR than CONTRACTOR can be reasonably required to do, the consequences shall be settled equitably by the parties. By being taken into use in the sense referred to in the present article, WORK or the part thereof concerned shall not be deemed to have been accepted and shall not limit or waive CONTRACTOR's obligations or liabilities under the CONTRACT.

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ARTICLE 14

LIABILITY OF CONTRACTOR FOR LOSS/DAMAGE AND INJURIES

14.1 CONTRACTOR shall until ACCEPTANCE of WORK be liable for all loss of and/or damage to :

- a. The WORKS.
- b. Any item of CONTRACTOR SUPPLIED MATERIALS whether at the JOBSITE, or in the course of being transported to the JOBSITE or elsewhere.
- c. Any item of FREE-ISSUE MATERIALS as from the moment of receipt by CONTRACTOR as stipulated in the CONTRACT.

CONTRACTOR shall make suitable security arrangements to ensure protection of all MATERIALS and WORKS from theft, fire, pilferage and any other damage or loss.

14.2 Until the DEMOBILISATION DATE CONTRACTOR shall be liable for all loss of and/or damage to :

- a. WORKS (including FREE-ISSUE MATERIALS), after ACCEPTANCE OF WORK,

due to the fault, omission, negligence or lack of due diligence of CONTRACTOR and/or any SUBCONTRACTOR and/or their employees, servants, agents and/or representatives.

14.3 Until the DEMOBILISATION DATE, CONTRACTOR shall be liable for :

- a. All loss of and/or damage to properties of third parties (including the properties of employees of EMPLOYER.
- b. all injuries (including death) to any and all persons;

resulting from or relating to CONTRACTOR's or any SUBCONTRACTOR's performance of WORK, or resulting from or relating to CONTRACTOR's or any SUBCONTRACTOR's failure to perform WORK in accordance with the CONTRACT notwithstanding that there may have been contributory negligence by ENGINEER-IN-CHARGE.

14.4 CONTRACTOR shall be liable for all injuries (including death) to his own and/or SUBCONTRACTOR's employees, servants, agents and/or representatives and for all loss of and/or damage to CONTRACTOR's and/or SUBCONTRACTOR's properties, CONTRACTOR's and/or SUBCONTRACTOR's employees, servants, agents and/or representatives, howsoever caused notwithstanding that there may have been contributory negligence by EMPLOYER and/or any of his REPRESENTATIVE.

14.5 Notwithstanding the provisions of Article 19 hereof, the loss, damage and injuries in respect of which there is liability at law (including death) mentioned in Articles 14.3 and 14.4 shall include consequential loss resulting from such loss, damage or injuries.

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- 14.6 In the event that CONTRACTOR and/or SUBCONTRACTOR performs work in connection with the guarantees under Article 17 after the DEMOBILISATION DATE, then subarticle 14.2, 14.3 and 14.4 will from the start of such work again become effective, on the understanding that WORK as referred to in subarticle 14.3 shall under such circumstances mean work in connection with the guarantees under Article 17.

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ARTICLE 15

INDEMNIFICATION

- 15.1 CONTRACTOR shall protect, defend, hold harmless and indemnify EMPLOYER, ENGINEER-IN-CHARGE, PMC or NES, from and against any action, cause of action, damages, claims, demands whatsoever, either at law or in equity, judgments including costs and legal fees which may be rendered against EMPLOYER, and/or PMC and/or NES and ENGINEER-IN-CHARGE, arising from any incident referred to in subarticle 14.3 and 14.4.
- 15.2 Without prejudice to the provision of subarticle 15.1, CONTRACTOR shall hold harmless and indemnify EMPLOYER, ENGINEER-IN-CHARGE, and/or PMC and/or NES from and against all liens, attachments or claims by SUBCONTRACTORS or persons alleging to be SUBCONTRACTORS in connection with or arising out of WORK. EMPLOYER shall have the right to withhold the amount involved in the cost arising out of such lien, attachment or claim from any payment due to CONTRACTOR until removal of such lien, or attachment or settlement of such claim by CONTRACTOR.

ARTICLE 16

INSURANCE

- 16.1 CONTRACTOR shall, at his own cost, take out and maintain and/or arrange for the provisions of the following insurances in such form and of such limit as shall be acceptable to the EMPLOYER during the performance of his obligations under the CONTRACT.
- 16.1.1 Workman's Compensation Insurance, covering all employees of CONTRACTOR for statutory benefits as set out and required by applicable law in the area of operation or area in which CONTRACTOR may become legally obliged to pay benefits for bodily injury or death.
- 16.1.2 Insurance against fire, theft, damage or loss of all property and equipment owned by CONTRACTOR at the JOBSITE.
- 16.1.3 Group personnel Accident Insurance covering CONTRACTOR's employees not otherwise already covered under subarticle 16.1.1 above, operating from the JOBSITE as per CONTRACTOR's established practices.
- 16.1.4 Insurance covering cash in transit/safe/fidelity for all cash transactions performed by CONTRACTOR.
- 16.1.5 Automobile Liability Insurance covering all vehicles owned or hired by CONTRACTOR at the JOBSITE in accordance with the Motor Vehicles Act.
- 16.1.6 Any such other insurance covers as may be required of CONTRACTOR by Statutory bodies and local law in the area(s) of his operation(s).

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- 16.1.7 The CONTRACTOR shall, at his own cost, insure without limiting his or EMPLOYER's obligations and the responsibilities under Clauses 16.1.1 to 16.1.6 and 16.5, in the joint names of CONTRACTOR and the EMPLOYER, against liabilities for death of or injury to any person and damage/destruction to any property (other than WORKs) arising out of the performance of the CONTRACT. Such insurance shall be for Rs.10,00,000/- (Rupees ten lakhs only) for any one claim or number of claims in any one year which shall be reinstated in case of a claim.
- 16.2 CONTRACTOR's liability under the CONTRACT will not be restricted, limited or altered by any stipulation or arrangement in the CONTRACT with regard to insurance or by any approval of insurance policies and all losses and/or damages for which CONTRACTOR is liable, will be for CONTRACTOR's account.
- 16.3 The above insurance provisions shall also apply to all SUBCONTRACTORS. CONTRACTOR shall be responsible for any violation of the said provision.
- 16.4 The CONTRACTOR hereby waives all rights of recovery from EMPLOYER in connection with any/ all claims arising out of insurance policies mentioned above and shall cause its insurance policies to provide a waiver of subrogation in favour of EMPLOYER.
- 16.5 CAR policy shall be arranged by the EMPLOYER.
- 16.6 The CONTRACTOR shall furnish written evidence to the ENGINEER-IN-CHARGE within 15 days of notification of CONTRACT award that all required insurances have been provided, and shall provide written evidence immediately upon renewal of any insurance policy.
- 16.7 The CONTRACTOR shall be responsible for taking care of FREE ISSUE MATERIALS against theft and pilferage. In case of any such event, the recoveries will be made at the rates stipulated in the Special Conditions of CONTRACT.

ARTICLE 17

GUARANTEES AND LIABILITY

- 17.1 CONTRACTOR guarantees that the WORK is in accordance with the requirements of the CONTRACT.
- 17.2 In the event that until twelve (12) months after ACCEPTANCE OF WORK (hereinafter referred to as DEFECT LIABILITY PERIOD) it appears that the conditions guaranteed by CONTRACTOR in subarticle 17.1 have not been or are no longer met, EMPLOYER shall as soon as possible notify CONTRACTOR in writing thereof.

EMPLOYER's written notification as aforesaid shall contain such supporting data as EMPLOYER thinks appropriate.

Promptly upon receipt of EMPLOYER's written notice as aforesaid CONTRACTOR shall, at his own expense, do everything to have such condition met.

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- 17.3 In case the event referred to in subarticle 17.2 takes place, CONTRACTOR shall guarantee the work for another twelve (12) months for the amended or additionally provided items of WORK from the date of completion of the subject amendment or additional supply of the item of WORK.
- 17.4 CONTRACTOR shall when fulfilling his obligations referred to in subarticle 17.2 keep EMPLOYER fully informed of the action that will be taken and the results obtained. Each such action requires EMPLOYER's prior approval which will not unreasonably be withheld.
- 17.5 Should CONTRACTOR fail to take any action required according to subarticle 17.2 within fourteen (14) days, EMPLOYER shall be entitled to take such action or to have such action taken and to recover from CONTRACTOR the costs thereof and/or related thereto.
- 17.6 CONTRACTOR shall be liable for all costs and damages incurred or suffered by EMPLOYER on account of CONTRACTOR's fault, omission, negligence or lack of due diligence in carrying out his obligations under the CONTRACT.
- 17.7 Within thirty (30) days of receipt of EMPLOYER's invoice thereof CONTRACTOR shall pay all the costs and damages for which CONTRACTOR is liable pursuant to subarticle 17.6.
- 17.8 CONTRACTOR's liability pursuant to subarticle 17.6 shall cover any instance of CONTRACTOR's fault, omission, negligence or lack of due diligence, whenever occurring.

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ARTICLE 18

PATENT INDEMNITY

- 18.1 CONTRACTOR shall at all times indemnify and hold EMPLOYER, ENGINEER-IN-CHARGE and/or PMC, , and/or NES harmless from all costs, damages and expenses arising out of any claims, actions or suits brought against EMPLOYER and/or PMC and/or NES by third parties in respect of any actual or alleged infringement of any patent or registered design or any similar rights resulting from the use of any technical information, data, process, design provided by CONTRACTOR to EMPLOYER. ENGINEER-IN-CHARGE shall promptly notify CONTRACTOR in writing of any such claims, actions or suits, upon such notice, or upon CONTRACTOR otherwise coming to know of such claim, action or suit, CONTRACTOR shall, on his own account, conduct, defend or dispose of such claim, action or suit. (EMPLOYER shall have the right to be represented in such claims, actions or suits by a counsel of his choice, at the sole expense of CONTRACTOR).
- 18.2 In case it is decided by a Court of law or any appropriate forum that an infringement, as aforesaid, has taken place, CONTRACTOR shall cause the WORKS or the operation thereof to be so modified at CONTRACTOR's cost and expense so that the further operation of the WORKS shall continue without such infringement or to acquire immunity from any such claim, action or suit by settlement, and such settlement or modification shall not affect in any manner the operation of the WORKS or the guarantees given by CONTRACTOR under the CONTRACT.

ARTICLE 19

CONSEQUENTIAL DAMAGES

- 19.1 CONTRACTOR shall not be liable, except under circumstances as specified in subarticle 19.2, for loss of anticipated profits and any other consequential damages to EMPLOYER resulting therefrom.
- 19.2 The exclusions of liability under subarticle 19.1 shall not apply if and to the extent the damage(s) in question are :
- a. Recovered from insurance provided that CONTRACTOR can demonstrate to EMPLOYER that CONTRACTOR has used his best endeavors to recover what is recoverable under said insurance; and/or
 - b. Caused by an act or omission of CONTRACTOR's management and/or supervisory personnel acting with the intent to cause damage, or recklessly and with knowledge that damage would probably result.
- 19.3 EMPLOYER shall not be liable for any consequential or special damages or loss of anticipated profits sustained by CONTRACTOR or his SUBCONTRACTORS.

ARTICLE 20

DISCONTINUATION DUE TO CONTRACTOR

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20.1 Regardless of the stage of completion of WORK, EMPLOYER has the right to notify CONTRACTOR not to proceed with WORK or part thereof, and to terminate the CONTRACT in the event :

- a. CONTRACTOR fails to comply with any requirements of the CONTRACT and CONTRACTOR has failed within ten (10) days after receipt of ENGINEER-IN-CHARGE's written notice, stating such failure, at his own expense to take and continuously proceed with all actions satisfactory to EMPLOYER to remedy such failure. The above shall not be construed as a limitation of any claim which EMPLOYER may have with respect to such failure.
- b. CONTRACTOR becomes bankrupt or goes into liquidation or CONTRACTOR makes a general assignment for the benefit of creditors or receiver is appointed for any property of CONTRACTOR.

20.2 In the event of such notification not to proceed, CONTRACTOR shall immediately or upon such other date as is specified in the notification discontinue his performance of work, or the relevant part thereof, and shall assign to EMPLOYER, or his nominee, all rights and titles referred to in subarticle 4.4 and take all such further steps as are necessary to enable EMPLOYER, or his nominee, to take over CONTRACTOR's position in the performance of work with the least possible disruption, all in accordance with EMPLOYER's instructions, if any.

Such further steps shall include but not be limited to:

- a. Enabling EMPLOYER or his nominee to take over work so far completed, or the relevant part thereof, and more specifically all or the relevant part of the materials in CONTRACTOR's care, custody or control.
- b. Enabling EMPLOYER or his nominee, to the extent desired by EMPLOYER, to take over all construction equipment at the JOBSITE provided by CONTRACTOR.
- c. The delivery to EMPLOYER, or his nominee, of all erection plans, schedules drawings, specifications and all other data prepared by CONTRACTOR or any SUBCONTRACTOR in connection with work or the relevant part thereof and all documents, drawings and other data supplied to CONTRACTOR by or on behalf of EMPLOYER in connection with work.
- d. The assignments to EMPLOYER or his nominee to the extent required by EMPLOYER, all SUB-CONTRACTS and other obligations and terminate such SUB-CONTRACTS and other obligations not so assignable.

20.3 In the event of such discontinuation, CONTRACTOR shall, subject to subarticles 20.8 and 20.10 , in first instance only be entitled to a sum of money representing:

- a. The actual cost incurred by CONTRACTOR in the performance of the part of work completed in accordance with the CONTRACT upto the date of discontinuation referred to in subarticle 20.2 or
- b. The total of the amounts actually paid under the CONTRACT for such part of work, whichever of the two is the lower.

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Should the total amounts paid under the CONTRACT referred under b. above exceed the actual costs referred to under a. above, CONTRACTOR shall refund to EMPLOYER within thirty (30) days after the actual costs have been established, any amount paid under the CONTRACT so in excess.

Any costs incurred by CONTRACTOR in taking the steps such as indicated in subarticle 20.2 shall be for CONTRACTOR's account.

- 20.4 The actual costs referred to under a. of subarticle 20.3 shall be examined and certified as sound by independent auditors appointed by EMPLOYER. All costs involved therein shall be for CONTRACTOR's account.
- 20.5 Any additional cost or any damage incurred or suffered by EMPLOYER as a result of CONTRACTOR's failure as referred to in subarticle 20.1 shall be paid by CONTRACTOR.

Such costs shall include but not be limited to increased costs, if any, necessarily incurred by EMPLOYER in the completion of WORK. Increased costs, as aforesaid, shall be the difference between the "ultimate cost" as hereinafter specified and the CONTRACT PRICE.

The "ultimate cost" shall be an amount consisting of:

- a. The sum of money to which CONTRACTOR is entitled pursuant to subarticle 20.3
plus
 - b. The cost actually and necessarily incurred by EMPLOYER for completion of the part of WORK not performed by CONTRACTOR.
plus
 - c. Cancellation charges, if any, incurred by EMPLOYER in terminating SUBCONTRACTS originally placed by CONTRACTOR but in EMPLOYER's opinion unacceptable for the further performance of WORK.
- 20.6 EMPLOYER undertakes, at CONTRACTOR's specific request to that effect, to supply CONTRACTOR, at CONTRACTOR's expense, with a certificate, of independent auditors appointed by the EMPLOYER, certifying the total "ultimate cost" as sound.
- 20.7 Upon completion of WORK by EMPLOYER or at such earlier date as EMPLOYER thinks appropriate, EMPLOYER shall inform CONTRACTOR that the construction equipment referred to in subarticle 20.2b is held available for CONTRACTOR at such place at or near the JOBSITE as EMPLOYER will indicate.

CONTRACTOR shall thereafter without delay remove or arrange for the removal of such construction equipment from such place.

Subject to subarticle 20.8 the cost of removal and further cost of demobilization of such construction equipment shall come to CONTRACTOR's account.

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20.8 Should it appear that the aforesaid “ultimate cost” is lower than the CONTRACT price, then EMPLOYER shall pay CONTRACTOR:

- a. The amount if any by which the actual costs referred to in subarticle 20.3a. exceeded the amounts actually paid referred to in subarticle 20.3 b.
 - b. A reasonable amount for profit on the part of WORK performed by CONTRACTOR.
 - c. A reasonable depreciation for the use of CONTRACTOR’s construction equipment referred to in subarticle 20.2b.
 - d. The reasonable cost of removal and further cost of demobilisation of the construction equipment, as referred to in subarticle 20.7 on the understanding that the aggregate amount of any or all payments under a. through d. above shall under no circumstances exceed the amount by which the “ultimate cost” underruns the CONTRACT PRICE.
- 20.9 It is understood that, if, for one of the reasons referred to in Article 20, the CONTRACT has been terminated, EMPLOYER shall be entitled to refuse WORK and to instruct CONTRACTOR to remove WORK at CONTRACTOR’s expense and hand over the JOBSITE in the original state as soon as possible, if the part of WORK carried out so far has been executed in such a way that, with use thereof, WORK cannot reasonably be expected to be complete in a technically and economically justified manner, with or without alterations, in accordance with the provisions of the CONTRACT.
- 20.10 In the case of refusal as referred to in subarticle 20.9, EMPLOYER shall not be obliged to make any reimbursement and the sums already paid to CONTRACTOR by EMPLOYER under the CONTRACT and shall be immediately due and shall be paid back to EMPLOYER by CONTRACTOR.
- 20.11 In the event of discontinuation of a part of WORK the provisions of article 20 shall apply mutatis mutandis.

ARTICLE 21

TERMINATION

- 21.1 In addition to EMPLOYER’s right set forth in Article 20, EMPLOYER has the right at any time, at his absolute discretion, to terminate the CONTRACT without any notice of default or judicial intervention being required for the purpose. Such termination shall become effective immediately after delivery of written notice to CONTRACTOR or on such later date as specified in this notice.
- 21.2 In the event of such notification to terminate the CONTRACT, CONTRACTOR shall either immediately or upon such other date as is specified in the notice:
- a. Discontinue his performance of WORK

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- b. Assign to EMPLOYER, or his nominee to the extent required by EMPLOYER, all SUBCONTRACTS and other obligations and any rights and titles referred to in subarticle 4.4.
 - c. Terminate all SUBCONTRACTS and other obligations not assigned to EMPLOYER pursuant to b. above.
 - d. Enable EMPLOYER or his nominee, to take over WORK so far completed and more specifically, all or the relevant part of the materials in CONTRACTOR's care, custody or control.
 - e. Remove from the JOBSITE all construction equipment provided by CONTRACTOR.
 - f. Deliver to EMPLOYER, or his nominee, all erection plans, schedules, drawings, specifications and all other data prepared by CONTRACTOR or any SUBCONTRACTOR in connection with WORK and all documents, drawings and other data supplied to CONTRACTOR by or on behalf of EMPLOYER in connection with WORK.
- 21.3 In the event of such termination CONTRACTOR shall be entitled to a sum of money representing:
- a. a sum of money representing the total of the amounts actually due under the CONTRACT for the part of the WORK performed.
 - b. the actual reasonable and auditable costs as accepted by EMPLOYER in as far as not already covered under a. of this subarticle 21.3 incurred by CONTRACTOR as a result of termination of the SUBCONTRACTS and other obligations vis-à-vis third parties referred to in subarticle 21.2c.
 - c. no compensation shall be paid for the loss of profit.

ARTICLE 22

SUSPENSION

- 22.1 EMPLOYER may, at any time, suspend any part of WORK, including all remaining WORK, for any reason whatsoever by giving notice to CONTRACTOR specifying the part of WORK to be suspended and the effective date of suspension. CONTRACTOR shall cease all WORK on said suspended part of WORK on the effective date of suspension. CONTRACTOR shall continue to execute any unsuspended part of WORK. Suspension, as aforesaid, shall not limit or waive CONTRACTOR's obligations or liabilities under the CONTRACT.
- 22.2 Unless the suspension is by reason of default or failure on the part of CONTRACTOR and the period of suspension is more than fifteen (15) days, then CONTRACTOR may apply to EMPLOYER for additional compensation consisting of:
- a. Costs of CONTRACTOR's employees whose retention on WORK during the period of suspension has been authorised in advance by EMPLOYER.
 - b. Costs of other items directly related to the suspended part of WORK, but only if authorised in advance by EMPLOYER.

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- 22.3 Subject to subarticle 22.2 EMPLOYER shall not be held liable for any damages or any losses of anticipated profits or losses or damages whatsoever on the part of CONTRACTOR by reason of any suspension of the WORK hereunder.
- 22.4 EMPLOYER may, at any time, authorize resumption of all or any part of the suspended part of WORK by giving notice to CONTRACTOR specifying the part of WORK to be resumed and effective date of suspension withdrawal. Suspended WORK shall be promptly resumed by CONTRACTOR after receipt of such notice.
- 22.5 Without prejudice to EMPLOYER's rights under subarticles 22.1 to 22.4 inclusive, EMPLOYER shall be entitled on giving written notice to CONTRACTOR to suspend the whole or any part of the WORK in the event of fault or failure of CONTRACTOR to carry out his obligations under this CONTRACT. In such event CONTRACTOR shall not be entitled to compensation for expenditure of any nature incurred in connection with such fault or failure, including, but not limited to, expenditure during the period of suspension.
- 22.6 CONTRACTOR shall continue to be liable under Articles 14.1 and 14.2 during the suspension period.

ARTICLE 23

FORCE MAJEURE

- 23.1 Force Majeure shall be events referred to hereafter, which are beyond the control of the parties and prevent or impede the due performance of the CONTRACT and which by due diligence the affected party is unable to foresee and avoid or overcome through its individual concerted efforts and which virtually affect the performance of the CONTRACT.

Force Majeure events are acts of God, earthquake, typhoon, cyclone, flood, lightening, land slide, fire explosion, plague, epidemic, invasion, act of foreign enemies, hostilities, war (whether war be declared or not), civil war, rebellion, revolution, insurrection, confiscation of power by military, trade embargoes by order or any act of government or any public authority.

- 23.2 If either party is prevented or delayed in the performance of its obligations under the CONTRACT by Force Majeure and if the affected party gives written notice within fourteen (14) days thereof to the other party specifying the matter constituting Force Majeure with necessary evidence that contractual obligations are thereby prevented or delayed, and the further period for which it is estimated that such prevention or delay will continue, then the affected party shall be excused from the performance or punctual performance as the case may be, of such obligation from the date of such occurrence for so long as the relevant Force Majeure conditions continue.
- 23.3 EMPLOYER and CONTRACTOR shall be diligent in attempting to prevent or remove the causes of Force Majeure. The parties upon receipt of notice of Force Majeure shall confer promptly with each other and agree upon a course of action to remove or alleviate such cases.
- 23.4 If by virtue of subarticle 23.2 either party is prevented from fulfilling its contractual obligations by cause of Force Majeure lasting for a continuous period of three (3) months, then the parties shall consult each other with a view to agreeing to what action should be taken in the circumstances.

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The decision of the EMPLOYER whether there is a Force Majeure or not & whether extension of time shall be granted or not shall be final and binding on CONTRACTOR.

ARTICLE 24

ASSIGNMENT

- 24.1. Neither EMPLOYER nor CONTRACTOR shall be entitled to assign either in whole or in part any of his rights and obligations under the CONTRACT without the prior written consent thereto of the other party except the EMPLOYER shall have the right to assign any or all of his rights and obligations under the CONTRACT to any AFFILIATE OF EMPLOYER, subject only to prior written notice to CONTRACTOR. Any such consent shall not relieve the CONTRACTOR from any liability or obligation under the CONTRACT.
- 24.2 Any party to whom the rights and obligations under the CONTRACT are transferred shall be bound by all the provisions of the CONTRACT. CONTRACTOR shall procure as a condition precedent to any assignment that such assignment shall
- a . be executed in accordance with the provisions of the CONTRACT
 - b. be executed contemporaneously with a separate specific agreement in favour and for the benefit of EMPLOYER to the effect that the assignee accepts and agrees to be bound by the CONTRACT, and
 - c. be of no force or effect whatsoever unless and until the provisions of this Article 24 have been met , and an executed copy of the agreement referred to in b. above has been delivered to EMPLOYER as a precondition to granting the required written consent.
- 24.3 CONTRACTOR shall arrange that any rights and titles (together with the obligations connected therewith) relating to WORK which CONTRACTOR may directly or indirectly acquire vis-à-vis third parties can if so required by EMPLOYER be assigned to EMPLOYER in the event of discontinuation due to CONTRACTOR or termination of the CONTRACT as referred to in Articles 20 and 21 respectively.

ARTICLE - 25

COMPLIANCE WITH LAWS

- 25.1 CONTRACTOR shall observe and abide by and shall ensure that all SUBCONTRACTOR's shall observe and abide by all applicable laws, rules and regulations in connection with WORK including but not limited to those with respect to labor, insurance and taxes.
- 25.2 CONTRACTOR shall obtain without delay such authorizations, approvals, permits, consents, import and other licenses which are necessary for it to perform WORK, with the exception only of those which EMPLOYER will obtain regarding availability of the JOBSITE and ownership and operation of the PROJECT.

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- 25.3 CONTRACTOR shall be responsible for strict compliance of and shall ensure strict compliance by his SUBCONTRACTORS servants and agents of all labor and other laws, rules or regulations having the force of law affecting the relationship of employer and employee between the CONTRACTOR/SUBCONTRACTORS and their respective employees.
- 25.4 CONTRACTOR and SUBCONTRACTOR(s) shall obtain authority(ies) designated in this behalf under any applicable law, rule or regulation (including, but not limited to, the Factories Act and Labor Abolition and Regulation Act, 1970 (insofar as applicable) any and all such license(s) consent(s), registration(s) and/or other authorisation(s) as shall from time to time be or become necessary for or relative to the execution of the WORK or any part or portion thereof or the storage or supply of any materials or otherwise in connection with the performance of the CONTRACT, and shall at all times observe and ensure due observance by the SUBCONTRACTORS, servants and agents of all terms and conditions of the said license(s), consent(s), regulation(s) and other authorization(s) and laws, rules and regulations applicable thereto.
- 25.5 CONTRACTOR shall ensure that wages are paid by himself or by his SUBCONTRACTORS to their workmen directly without the intervention of any Jamadars or Thekadars and that no amount by way of commission or otherwise is deducted or recovered by the jamadars from the wages of the workmen.
- 25.6 EMPLOYER shall be entitled at all times to carry out any check(s) or inspection(s) of CONTRACTOR's facilities, records and documents to ensure that the provisions of the Labor Laws and Regulations are being observed by CONTRACTOR and that the workmen are not denied the rights and benefits to which they are entitled under such provisions. Any violation shall, without prejudice to any other rights or remedies available to the EMPLOYER, constitute a ground for discontinuation of the CONTRACT as set forth in Article 20 under the CONTRACT.
- 25.7 CONTRACTOR shall indemnify and keep indemnified EMPLOYER from and against all actions, claims, demands and liabilities whatsoever under and in respect of the breach of any of the provisions of this articles and/or against any claim, action or demand by any workman/employee of CONTRACTOR or any SUBCONTRACTOR and/or from any liability anywise to any SUBCONTRACTOR under any law, rules or regulation having the force of law, including, but not limited to, claims against the EMPLOYER under the Workmen's Compensations Act 1923, the Employees Provident Funds Act 1952, and/or the contract labour (Abolition and Regulation Act 1970).
- EMPLOYER reserves right to deduct any amount that becomes payable by CONTRACTOR in respect of the labor being employed by him for executing the WORK awarded, under any Act or rules framed thereunder and in force from time to time. The same shall be recovered from bills payable to CONTRACTOR as debt recoverable.
- 25.8 The CONTRACTOR shall obtain necessary license from the Licensing Authority under the Contract Labour (Regulation & Abolition) Act, 1970 and the Central Rules framed thereunder and produce the same to the ENGINEER-IN-CHARGE before start of WORK.
- 25.9 The provision of EPF & MP Act , 1952 and the Rules/Scheme thereunder shall be applicable to the CONTRACTOR and the employees engaged by him for the WORK. The CONTRACTOR

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shall furnish the code number allotted by the RPFC Authority, to the ENGINEER-IN-CHARGE before commencing the work.

- 25.10 The CONTRACTOR shall be exclusively responsible for delay in commencing the work on account of delay in obtaining a license under Article 25.8 above or in obtaining the code number under Article 25.9 above and the same shall not constitute a ground for extension of time for any purpose.

ARTICLE - 26

OWNERSHIP/TITLE

- 26.1 CONTRACTOR warrants, and ensures that his SUBCONTRACTORS shall warrant, that EMPLOYER will be owner of CONTRACTOR SUPPLIED MATERIALS as soon as CONTRACTOR or his SUBCONTRACTORS become owner of the CONTRACTOR SUPPLIED MATERIALS.
- 26.2 All CONTRACTOR SUPPLIED MATERIALS with respect to which ownership has vested in EMPLOYER in accordance with subarticle 26.1 shall be registered by CONTRACTOR as being held on behalf of the EMPLOYER and as being the property of the EMPLOYER and such CONTRACTOR supplied materials shall be segregated by CONTRACTOR and shall be marked or otherwise identified as such.
- 26.3 CONTRACTOR shall ensure that in SUBCONTRACTS provisions similar to those incorporated under subarticles 26.1 and 26.2 are included to secure EMPLOYER's right as stated above.
- 26.4 All Free-issue materials shall at all times remain EMPLOYER's property and shall be marked or otherwise identified as such in case any free-issue materials shall be made available to CONTRACTOR for use on other places than the JOBSITE.
- CONTRACTOR shall maintain separate records of receipt, use and return of all such free-issue materials and all CONTRACTOR SUPPLIED MATERIALS.
- 26.5 Notwithstanding the provisions of subarticles 26.1, 26.2 and 26.3 ownership of any CONTRACTOR SUPPLIED MATERIALS which may pursuant to article 12 be rejected by EMPLOYER shall revert immediately upon such rejection to CONTRACTOR.
- 26.6 Title to all drawings, specifications, calculations and other documents prepared by CONTRACTOR and/or any SUBCONTRACTOR in connection with WORK, shall vest in EMPLOYER and EMPLOYER shall have the right to use these drawings, specifications, requisitions, calculations and other documents for any purpose without any obligation of any kind to CONTRACTOR or any SUBCONTRACTOR.

ARTICLE - 27

SECRECY

- 27.1. CONTRACTOR shall maintain in confidence any and all information provided to CONTRACTOR by EMPLOYER, ENGINEER-IN-CHARGE and/or PMC and NES directly or indirectly or

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contained in the CONTRACT documents and any and all information developed or arising from the execution of this CONTRACT or WORK and may only disclose the same if and to the extent that EMPLOYER from time to time approves and after obtaining from any relevant third party appropriate protection acceptable to EMPLOYER as to confidentiality but in any event only to the extent necessary to effect the execution of the WORK.

27.2 The foregoing restrictions shall not apply to:

- 27.2.1 Any information which at the time of disclosure by EMPLOYER, PMC or NES to CONTRACTOR is in the public domain as evidenced by printed publication or otherwise.
- 27.2.2 Any information which after disclosure by EMPLOYER, PMC or NES to CONTRACTOR becomes part of the public domain by publication or otherwise, other than by action by CONTRACTOR or his SUBCONTRACTORS.
- 27.2.3 Any information which CONTRACTOR can show was in his possession at the time of disclosures by EMPLOYER, PMC or NES to CONTRACTOR without limitation or restriction against subsequent use or disclosure and was not acquired, directly or indirectly, from EMPLOYER, PMC or NES.
- 27.2.4 Any information which CONTRACTOR rightfully receives from an independent third party who did not receive such information, directly or indirectly from EMPLOYER, PMC or NES with limitation or restriction on his use.

ARTICLE - 28

WAIVER

A waiver on the part of EMPLOYER or CONTRACTOR of any breach of any term, provision or condition of the CONTRACT shall not constitute a precedent nor bind either party hereto to a waiver of any succeeding breach of the same or any other term, provision or condition of the CONTRACT.

ARTICLE - 29

APPLICABLE LAW

The CONTRACT shall be governed and construed in accordance with the laws of India. The Courts situated at Bombay will have exclusive jurisdiction for the purposes of actions, proceedings arising out of the CONTRACT.

ARTICLE - 30

ARBITRATION

- 30.1 In the event of any dispute or difference arising between EMPLOYER and CONTRACTOR touching or concerning the interpretation or performance of this CONTRACT or relative to this

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CONTRACT or in connection therewith or the rights and liabilities of either of the parties hereto, the parties shall endeavor to settle the same by mutual agreement.

If the parties hereto should fail to settle such difference or dispute by agreement, the same shall be finally settled by arbitration at the request of either of the parties hereto. The arbitration shall be conducted by a panel of two (2) arbitrators, with one (1) arbitrator being selected by EMPLOYER and one (1) arbitrator selected by CONTRACTOR and umpire selected by the two (2) arbitrators. In the failure of the first two (2) arbitrators within thirty (30) days to name the umpire, he shall be appointed by federation of Indian Chamber of Commerce and Industry at the request of either party. The arbitrators shall give a reasoned award.

Such arbitration shall be conducted at Bombay in the English language. Subject to the aforesaid, the provisions of Arbitration Act, 1940, or any statutory modification or re-enactment thereof and the provisions made thereunder and for the time being in force, shall apply to the Arbitration proceedings under this Clause.

- 30.2 The parties hereby agree that the decision or award of arbitrator shall be final and binding on both parties.
- 30.3 The existence of any such proceedings shall not constitute a reason for the suspension or stoppage of WORK under the CONTRACT.

ARTICLE - 31

LANGUAGE

For all aspects of the CONTRACT the English language shall be the ruling language.

ARTICLE - 32

NOTICES

- 32.1 All notices or communications required, or duly authorized to be given hereunder shall be sufficiently given in the English language and sent by prepaid registered post (return receipt requested) addressed to ENGINEER-IN-CHARGE or CONTRACTOR as the case may be at the JOBSITE, or at such other address as may be designated in writing hereafter by the parties or for the receipt of such notices or communications.
- 32.2 Any notice or communication given or made under the CONTRACT by one party to the other party may be given, unless specifically stated otherwise in the CONTRACT by telex or cable with transmission charges fully paid for, to the other party at its place of business first above written or at such other place as may be agreed in writing by the parties.

ARTICLE - 33

WEATHER CONDITIONS

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CONTRACTOR assumes all risks of climatic conditions during the execution of WORK and will, regardless of such conditions or the expense or difficulty of performing his obligations to EMPLOYER, fully complete WORK for the stated CONTRACT PRICE within the schedule as mentioned in article 6 herein before.

ARTICLE - 34

ADMINISTRATION OF DOCUMENTS ETC..

Administration of drawings, specifications, certification, documentation and any possible revisions to such aforementioned document is included in the CONTRACT PRICE and unit prices. No additional compensation shall be taken into consideration for this.

ARTICLE - 35

TAXES / AUDITING

- 35.1 Any rentals, royalties, fees, charges, taxes, levies, imposts or other duties of whatever nature required to be paid in connection with the WORK including Sales Tax on Works Contract/Turnover Tax within India or any other country shall be borne by CONTRACTOR and shall be deemed to be included in CONTRACT PRICE. CONTRACTOR shall register himself with the Sales Tax Authorities in the State of Gujarat.
- 35.2 CONTRACTOR agrees to and hereby accepts full and exclusive responsibility for the payment of all salaries, wages, commission, allowances and other remuneration to CONTRACTOR's or any SUBCONTRACTOR's employees, servants, agents or representatives and of the deduction of the applicable taxes, legal, social and any other burdens therefrom for remittance to tax, legal, social and any other authorities and the CONTRACT price shall be deemed to include any of the foregoing.
- 35.3 EMPLOYER shall, until two years after expiry of the guarantee period referred to in article 17 have the right at all reasonable times to carry out audits of CONTRACTOR's books and records.
- 35.4 Any variation in Sales Tax in India due to statutory bodies shall be reimbursed to the CONTRACTOR on production of documentary evidence subject to the following:
 - i) CONTRACTOR should indicate along with his offer rates of duties and taxes considered at the time of submission of his offer.
 - ii) The delay in completion of work is not solely attributable to the CONTRACTOR. In case delay is attributable to the CONTRACTOR, no reimbursement compensation on this ground shall be admissible for the extended contract period.

ARTICLE 36

CLAIMS

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- 36.1 CONTRACTOR shall notify ENGINEER-IN-CHARGE in writing of the happening of any event which gave or may give rise to claim by CONTRACTOR for payment in addition to the CONTRACT PRICE or DISPUTES regarding any deductions made from the progressive bills. Any such notification shall outline such event and shall be issued not later than fifteen (15) calendar days after the date of which the occurrence of such event took place. Within fifteen (15) calendar days after the date of the written notification, as aforesaid, CONTRACTOR shall submit in writing to ENGINEER-IN-CHARGE full particulars stating the circumstances and all other facts on which the request is based and the amounts claimed.
- a. No application for additional payment shall be considered which does not comply with the above requirements and the CONTRACTOR shall be deemed to have waived any or all claims in respect or such occurrence.
 - b. CONTRACTOR shall keep and cause his SUBCONTRACTORS to keep full records relative to any claims and necessary to support the claims and shall keep EMPLOYER informed of outstanding claims on a monthly basis.
- 36.2 The ENGINEER-IN-CHARGE shall be under no obligation to reply to any notice of claim given or claim made by the CONTRACTOR within the provisions aforesaid or otherwise or to otherwise reject the same, and no commission or failure on the part of the ENGINEER-IN-CHARGE to reject any claim made or notified by the CONTRACTOR or delay in dealing therewith shall be deemed to be an admission by the ENGINEER-IN-CHARGE & EMPLOYER of the validity of such claim or waiver by the ENGINEER-IN-CHARGE & EMPLOYER of any rights in respect thereof, with the intent that all such claims otherwise valid within the provisions of CONTRACT shall be dealt with or considered by the EMPLOYER at the time of submission or payment of the Final bill.
- 36.3 Any or all claims of the CONTRACTOR notified in accordance with the provision of CONTRACT hereof shall remain at the time of preparation of Final bill by the CONTRACTOR and shall be separately included in the Final Bill prepared by the CONTRACTOR in the form of a Statement of Claims attached thereto, giving particularly of the CONTRACTOR in the claim, grounds on which it is based, and the amount claimed and shall be supported by a copy(ies) of the notice(s) sent in respect thereof to EMPLOYER. In so far as such claim shall in any manner particular be at variance with the claim notified by the CONTRACTOR earlier, it shall be deemed to be a claim different from the notified claim with consequence in respect thereof indicated above.
- 36.4 Any and all notified claims not specifically reflected and included in the Final Bill in accordance with the provisions of CONTRACT shall be deemed to have been waived by the CONTRACTOR, and the EMPLOYER shall have no liability in respect thereof and the CONTRACTOR shall not be entitled to raise or include in the Final Bill any claim(s) other than a notified claim conforming in all respects in accordance with the provisions of CONTRACT.
- 36.5 No claim(s) shall on any account be made by the CONTRACTOR after the Final Bill, with the intent the Final Bill prepared by the CONTRACTOR shall reflect any and all claims whatsoever of the CONTRACTOR against the EMPLOYER arising out of or in connection with the CONTRACT or WORK performed by the CONTRACTOR thereunder or relation thereto, and the CONTRACTOR shall notwithstanding any enabling provision in any law or CONTRACT and notwithstanding any claim in quantum meruit that the CONTRACTOR could have in respect thereof, be deemed to have waived any and all such claims not included in the Final Bill and to

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have absolved and discharged the EMPLOYER from and against the same, even if in not including the same as aforesaid, the CONTRACTOR shall have acted under a mistake of law or fact.

- 36.6 Notwithstanding the existence of any claim by the CONTRACTOR in terms hereof or otherwise, the CONTRACTOR shall continue and be bound to continue and perform the WORK to completion in all respects according to the CONTRACT unless the CONTRACT or WORK be priory determined by the EMPLOYER in terms hereof and shall remain liable and bound in all respects under the CONTRACT.
- 36.7 The payment of any sum on account to the CONTRACTOR during the performance of any WORK or item of WORK in respect of which a claim has been notified by the CONTRACTOR in terms of above clause or the making or negotiation of any interim arrangements, in respect of the performance of such WORK or item of WORK by the EMPLOYER, shall not be deemed to be an acceptance of the related claim by the EMPLOYER, or any part or portion thereof with the intent that any such payment shall constitute merely a facility or assistance to the CONTRACTOR, and not an obligation upon the EMPLOYER.

ARTICLE - 37

EMPLOYER'S RIGHTS TO WITHHOLD PAYMENT

- 37.1 EMPLOYER may at his discretion withhold any amounts due CONTRACTOR under the CONTRACT if:
1. WORK or any part thereof that is defective, is not remedied.
 2. CONTRACTOR fails to fulfill any of his financial obligations under the CONTRACT, or to his SUBCONTRACTORS, or to his employees.
 3. CONTRACTOR caused injury or damage to third parties on the JOBSITE.
 4. CONTRACTOR does not perform according to the time schedule.
- 37.2 EMPLOYER may at his discretion withhold any amounts due to CONTRACTOR under the CONTRACT when it appears that CONTRACTOR and/or his SUBCONTRACTORS have not fulfilled any of their obligations under law and/or social institutions, including but not limited to payment of PF dues, etc.
- 37.3 Notwithstanding a withholding as per paragraph 37.2 CONTRACTOR remains fully responsible at law for all claims from governmental, public bodies and/or social institutions for himself and his SUBCONTRACTORS.
- 37.4 When the above reasons for withholding payment do no longer exist, payment by EMPLOYER shall promptly be made.

ARTICLE - 38

PLANS, DESIGNS, DRAWINGS AND TECHNICAL SPECIFICATIONS

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- 38.1 EMPLOYER shall furnish to CONTRACTOR plans, designs, drawings, technical specifications and other technical data for the WORK to be performed in numbers and types as indicated in the CONTRACT at time to time during the progress of the WORK as and when required. The tender drawings are only for the guidance to enable in finalisation of WORK contemplated in the CONTRACT. Unless provided for otherwise in the CONTRACT such plans, designs, drawings, technical specifications and other technical data will be furnished free of charge. It shall be CONTRACTOR's responsibility to obtain from ENGINEER-IN-CHARGE all of the items indicated in the CONTRACT sufficiently in advance of the stage of WORK planned and failure to do so shall be at the risk and cost of CONTRACTOR and shall not constitute ground for extension of time.
- 38.2 CONTRACTOR shall thoroughly acquaint himself with the WORK to be performed by studying the plans, designs, drawings, technical specifications and other technical data and actual conditions of WORK. where specifications and drawings may appear in conflict or not complete in detail, CONTRACTOR shall not avail himself of such omissions or errors to the detriment of WORK. Should any conflict, error, omission or discrepancy exist in or between the drawings, specifications, instructions or in WORK done by others, CONTRACTOR shall notify ENGINEER-IN-CHARGE at once and ENGINEER-IN-CHARGE will issue written instructions to be followed. If CONTRACTOR proceeds with any of the WORK in question prior to receiving such instructions, all necessary corrections shall be at CONTRACTOR's expense. EMPLOYER shall be entitled at any time before or during execution of any WORK(s) to amend or modify or alter any plan(s) or drawings (s) furnished to CONTRACTOR by the EMPLOYER, PMC or NES and CONTRACTOR thereafter shall perform as per the amended or modified or altered plan (s) or drawings without entitlement to extra remuneration. Should CONTRACTOR perform WORK in variance with such revisions in the plan (s) or drawings(s) the provision of clauses relating to defective WORK shall apply. Provided that if such revisions in plan(s) or drawings(s) necessitate extension of time the provisions of related clauses for extension of time shall apply.
- 38.3 CONTRACTOR shall prepare at his own expense any sketches, drawings, procedures or whatever additional other documents it may deem necessary to accomplish WORK. Such sketches, drawings procedures or other documents shall be marked by EMPLOYER as "Approved for Construction" or "HOLD" or both as the case may be.
- 38.4 If the WORK performed by CONTRACTOR does not comply with the intent of the scope of WORK and the documents and drawings being part thereof, CONTRACTOR shall remedy the WORK at his own expense.
- 38.5 CONTRACTOR shall only carry out WORK in accordance with "Approved for Construction" drawings unless specific approval from ENGINEER-IN-CHARGE has been obtained to deviate from this rule. The use of "Approved for Construction" drawings or specifications does not relieve CONTRACTOR of the obligations described under subparagraph 38.2 and 38.4
- 38.6 Whenever a certain area or section or detail has been marked "HOLD" on any drawings or specification CONTRACTOR shall proceed with all WORK to which the "HOLD" marking does not apply. Until CONTRACTOR receives a revised "Approved for Construction" drawing or specification which has no "HOLD" marking, CONTRACTOR shall not undertake any WORK applicable to that area, section or detail.

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- 38.7 If such “HOLD” marking causes a delay to the execution of WORK, CONTRACTOR shall report such delay in writing to ENGINEER-IN-CHARGE at least ten days prior to the delay itself. EMPLOYER shall not recognize any contention of delay if CONTRACTOR can perform useful WORK outside the area marked “HOLD”.
- 38.8 All plans & drawings relating to WORK shall be kept and maintained at the CONTRACTOR's office and shall be available to EMPLOYER for inspection. The plans and drawings shall be property of the EMPLOYER and the same shall be returned to EMPLOYER by CONTRACTOR on completion or prior to determination of CONTRACT.
- 38.9 PLANS, DESIGNS & DRAWINGS TO BE FURNISHED BY CONTRACTOR;
- 38.9.1 Where the CONTRACTOR shall, within the scope of WORK be required to prepare or furnish any plan(s), drawings(s) or design(s) in respect of the WORK or any particular WORK the CONTRACTOR shall within 15 (fifteen) days (or such other period as the EMPLOYER may prescribe in this behalf) of receipt of notification letter of intent or within 15 (fifteen) days before the proposed date of commencement of the relative WORK, whichever shall be earlier, submit to the ENGINEER-IN-CHARGE for approval the relative plan(s)/drawing(s)/design(s). The EMPLOYER shall be entitled at any time to suggest any amendment(s) / modification(s) in the plans/designs/drawings and the CONTRACTOR shall thereupon either convince the EMPLOYER of the unnecessariness in whole or portion of such amendment/modification or shall implement the same and shall cause the plans / drawings / designs to be accordingly amended / provided that no such approval of or amendments / modifications in the plans drawings / designs by or suggested by the EMPLOYER shall anyway absolve the CONTRACTOR of any of his obligations, responsibilities or liabilities under the CONTRACT, inclusive of and relative to the utility and suitability of the CONTRACTOR's plans /drawing/designs in the relative WORK(s) and the fulfillment of all specifications and performance guarantees of the consequent WORKs any such approval or suggestion by EMPLOYER as aforesaid being intended only by way of assistance to the CONTRACTOR without any attendant liability upon the EMPLOYER.
- 38.9.2 The CONTRACTOR shall not permit any WORK to be done or any installation, material or equipment to be supplied or fabricated or erected at variance with drawings/designs approved by the EMPLOYER and/or amended or modified as aforesaid.
- 38.9.3 Unless otherwise required at least 4 (four) sets of all approved plans/drawings/designs prepared by the CONTRACTOR, together with similar sets of all revision/amendments/modifications therein shall be lodged with the ENGINEER-IN-CHARGE for the record of the EMPLOYER, such sets of plans/drawings/designs to be signed by the CONTRACTOR and to indicate thereon the number and date of each revision/amendment and of the communication, of the ENGINEER- IN-CHARGE or relative to the approval thereof.
- 38.10 ALTERATIONS IN DESIGNS, PLANS, DRAWINGS, SPECIFICATIONS, ORDERS AND INSTRUCTIONS:
- 38.10.1 EMPLOYER shall have the power in the course of the execution of the WORKs and any part thereof to alter or amend the and/or instructions of any of them by addition, omission, substitution or otherwise with or without altering or amending the plans, drawings and/or designs and the

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CONTRACTOR shall carry out the WORK or the related WORK in accordance with such altered specifications, instructions, plans, drawings, or designs as the case may be on the same terms and conditions in all respects.

38.10.2 If such alteration or amendment shall in the opinion of the CONTRACTOR necessitate an extension in the time for completion of the WORK the provisions of related clauses with regard to the extension of time shall apply.

38.10.3 If such alteration or amendment shall, in the opinion of ENGINEER-IN-CHARGE, necessitate the performance of any WORK not covered by the schedule of rates, the remuneration for such WORK or portion of item thereof not covered by the schedule of rates shall be determined in the following manner:

- (i) If it is possible to derive the rate(s) for such WORK or items of WORK from any of the items of material and / or WORK covered in the schedule of rates the rate(s) for the relative WORK/items shall be the rate(s) arrived at on basis of such derivation. The opinion of the EMPLOYER as to whether or not the relative rates can be derived from the rates for the items of material and /or WORK included in the schedule of rates and the consequent derivation of rate(s) on basis thereof shall be final and binding upon the CONTRACTOR:
- (ii) If in the opinion of the EMPLOYER the relative rate(s) shall not be derivable within the provisions of paragraph (i) hereof above, the relative rate(s) shall be the rate(s) for the WORK or items of WORK settled as follows:

An analysis of the rate for the completed WORK or items shall be prepared by taking

- a) Issue rate for materials supplied by the EMPLOYER.
- b) Material supplied by the CONTRACTOR and incorporated in the permanent WORKs at the rate(s) for material specified in the relevant schedule forming part of the CONTRACT.
- c) Labour cost of rate(s) for labour specified in the relevant schedule forming part of the CONTRACT:
- d) Equipment cost as mutually agreed.
- (iii) The opinion of the EMPLOYER as to the quality and quantity of material and/or labour involved shall be final and binding on the CONTRACTOR.
- (iv) In the event of any item of material or labour involved not being covered by the relevant schedule forming part of the CONTRACT for the purpose of determining the rates in terms of items (b) and/or (c) of paragraph (ii) above, market rates for un-covered item(s) of material and/or labour shall be taken into account and there shall be added thereto 15% to cover CONTRACTOR's supervision, overheads and profit. For the purpose of clarification, it is stated that the 15% addition shall apply only for the determination of rates for any item not covered by the relevant schedule forming part of the CONTRACT. The opinion of the EMPLOYER in regard to market rates shall be final and binding on the CONTRACTOR.

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- (v) The opinion of the EMPLOYER as to whether or not only particular items of material(s) or labour involved is covered by the relevant schedule(s) and if not as to the market rate(s) thereof shall be final and binding upon the CONTRACTOR.

38.10.4 The composite unit rate(s) for any WORK determined in accordance with the provisions of clause above for the purpose of the CONTRACT with effect from such determination shall be included within the schedule of rates, through an amendment by the EMPLOYER.

38.10.5 The CONTRACTOR shall not be entitled to any compensation in addition to the payment of the WORK actually performed by the CONTRACTOR calculated on the basis of the schedule of rate(s) or as provided for clause 38.10.3 hereof, as the case may be, as a result of any amendment or variation in the specifications, orders, instructions, plans, designs or drawings notwithstanding that such alteration(s)/variations(s) may have resulted in a reduction of the total quantum or value of the WORK involved under the CONTRACT.

ARTICLE 39

BACKCHARGES

- 39.1 EMPLOYER is entitled to back charge certain costs to CONTRACTOR by means of "Back-charge Memorandum".
- 39.2 If CONTRACTOR, after having been duly notified by ENGINEER-IN-CHARGE that the WORK performed by CONTRACTOR does not conform with the requirements of CONTRACT, fails to perform the stipulated remedial WORK satisfactorily within the reasonable time period specified by ENGINEER-IN-CHARGE, ENGINEER-IN-CHARGE may in order to enable others to proceed with follow-up WORK appoint a third party to remedy the WORK as required whereupon EMPLOYER will backcharge CONTRACTOR for the cost of such remedial WORK. In additional, EMPLOYER will levy on such costs a handling charge of fifteen percent (15%) .
- 39.3 Backcharge at cost plus a 15% handling charge will also be levied on CONTRACTOR in the following, but not necessarily only the following circumstances:
- ✓ When others incur expenses due to non-adherence of CONTRACTOR to the safety rules.
 - ✓ When others incur expenses due to damage to their WORK caused by CONTRACTOR.
 - ✓ When FREE-ISSUE MATERIALS which have been issued to CONTRACTOR are damaged or lost and need to be replaced.
 - ✓ When EMPLOYER incurs additional expenses for site cleaning due to non performance of the site cleaning obligation by CONTRACTOR.
 - ✓ When FREE-ISSUE MATERIALS are used for anything other than its intended purpose.
 - ✓ When on failure of the CONTRACTOR to keep his assigned part of the JOB SITE clean, EMPLOYER through another party conducts the cleanup as provided in Sub-article 5.3.
- 39.4 If backcharges have occurred ENGINEER-IN-CHARGE will once a month issue a summary to CONTRACTOR showing his position with respect to backcharges.
- 39.5 EMPLOYER shall have the right to deduct agreed backcharges from CONTRACTORS Invoices/R.A Bills.

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ARTICLE 40

SAFETY

- 40.1 CONTRACTOR shall follow the safety regulations issued by ENGINEER-IN-CHARGE and all safety rules and regulations of EMPLOYER and/or any other Authorities applicable to the WORK and shall take all necessary measures at his own cost to ensure that all of his SUBCONTRACTORS and their personnel, and CONTRACTOR's own personnel strictly adhere to these rules and regulations.

CONTRACTOR shall at his own cost obtain and maintain in force all licenses, consents and registrations from competent authorities as may be necessary for the conduct of the WORKS and furnish copies of the said licenses, consents and registrations to the EMPLOYER.

- 40.2 Individuals violating safety rules and measures can be removed from the JOBSITE by ENGINEER-IN-CHARGE.
- 40.3 CONTRACTOR is bound to correct for his own account unsafe working methods or unsafe situations, for which he is responsible. If CONTRACTOR fails to do so and in the event that CONTRACTOR is performing in what EMPLOYER considers to be an unsafe manner, ENGINEER-IN-CHARGE is entitled to suspend the WORK, in which case all related costs will be for CONTRACTOR's account.
- 40.4 CONTRACTOR's personnel shall be restricted to the areas required for the performance of their WORK. Wandering of CONTRACTOR's personnel through plant areas other than the immediate WORK area is not permitted.
- 40.5 During the weekly CONTRACT meeting at the JOBSITE, safety matters will be discussed. A representative of CONTRACTOR, responsible for safety, has to be present at these meetings.
- 40.6 CONTRACTOR shall adhere to safe construction practices and guard against hazardous and unsafe working conditions and shall comply with EMPLOYER's safety rules as set forth herein :

40.6.1 First Aid and Industrial Injuries

CONTRACTOR shall maintain first aid facilities for its employees and those of its SUB-CONTRACTORS.

CONTRACTOR shall make outside arrangements for ambulance service and for the treatment of industrial injuries. Names of those providing these services shall be furnished to ENGINEER-IN-CHARGE prior to start of construction, and their telephone numbers shall be prominently posted in CONTRACTOR's field office.

All critical industrial injuries shall be reported promptly to ENGINEER-IN-CHARGE and a copy of CONTRACTOR's report covering each personal injury requiring the attention of a physician shall be furnished to EMPLOYER.

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40.6.2 General Rules

Carrying/ striking of matches, lighters inside the Power Plant area, smoking within the Power plant, tank farm, or dock limits are strictly prohibited. Violators of the “No Smoking”, rules shall be discharged immediately. Within the operation area, no hot WORK shall be permitted without valid gas safety/fire permits. The CONTRACTOR shall be held liable and responsible for all lapses of his SUBCONTRACTORS/ employees in this regard.

40.6.3 CONTRACTOR'S BARRICADES

CONTRACTOR shall erect and maintain barricades required in connection with his operation to guard or protect -

- (i) Excavation
- (ii) Hoisting areas
- (iii) Areas adjudged hazardous by CONTRACTOR's or ENGINEER-IN-CHARGE
- (iv) EMPLOYER's existing property liable to damage by CONTRACTOR's operations, in the opinion of ENGINEER-IN-CHARGE.
- (v) Railroad unloading spots.

CONTRACTOR's employees and those of its SUBCONTRACTORS shall become acquainted with EMPLOYER's barricading practice and shall respect the provisions thereof.

Barricades and hazardous areas adjacent to but not located in normal routes of travel shall be marked by red flasher lanterns at night.

40.6.4 Scaffolding

Suitable scaffolding shall be provided for workmen for all WORKs that cannot safely be done from the ground or from solid construction except such short period WORK as can be done safely from ladders. When a ladder is used, an extra mazdoor shall be engaged for holding the ladder and if the ladder is used for carrying materials as well, suitable footholds and handholds shall be provided on the ladder and the ladder shall be given an inclination not steeper than 1 in 4 (1 horizontal and 4 vertical).

Scaffolding or staging more than 4 meters above the ground or floor or suspended from an overhead support or erected with stationary support shall have a guard rail properly attached, bolted, braced or otherwise secured at least 1 meters high above the floor or platform of scaffolding or staging and extending along the entire length of the outside and ends thereof with only such openings as may be necessary for the delivery of materials. Such scaffolding or staging shall be so fastened as to prevent it from swaying from the building or structure.

Working platforms, gangways and stairways should be so constructed that they should not sag unduly or unequally and if the height of the platform or the gangway of the stairway is more than

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4 meters above ground level or floor level, they should be closely boarded, should have adequate width and should be suitably fastened as described above.

Every opening in the floor of a building or in a Working platform be provided with suitable means to prevent the fall of persons or materials by providing suitable fencing or railing whose minimum height shall be 1 meters.

Safe means of access shall be provided to all working platforms and other working places. Every ladder shall be securely fixed. No portable single ladder shall be over 9 meters in length while the width between the side rails in rung ladder shall in no case be less than 0.30 meters for ladder upto and including 3 meters in length, for longer ladders this width would be increased at least 0.06 meters for each additional foot of length. Uniform step spacing shall not exceed 0.30 meters. Adequate precautions shall be taken to prevent danger from electrical equipment. No materials on any of the site of WORK shall be so stacked or placed as to cause danger or inconvenience to any person or public. The CONTRACTOR shall also provide all necessary fencing and lights to protect the workers and staff from accidents, and shall be bound to bear the expenses of defense of every suit, action or other proceeding, at law that may be brought by any person for injury sustained owing to neglect of the above precautions and to pay damages and costs which may be awarded in any such suit or action or proceedings to any such person, or which may with the consent of the CONTRACTOR be paid to compromise any claim by any such person.

40.6.5 Excavation and Trenching

All trenches 1.2 meters or more in depth, shall at all times be supplied with at least one ladder for each 30 meters length or fraction thereof.

Ladder shall be extended from bottom of the trench to at least 1 meter above the surface of the ground. The sides of the trenches which are 1.5 meters or more in depth shall be stepped back to give suitable slope, or securely held by timber bracing, so as to avoid the danger of sides to collapse. The excavated material shall not be placed within 1.5 meters of the edge of the trench or half of trench depth whichever is more. Cutting shall be done from top to bottom. Under no circumstances shall undermining or undercutting be done.

40.6.6 Demolition

Before any demolition WORK is commenced and also during the process of the WORK all roads and open areas adjacent to the WORK site shall either be closed or suitably protected.

No electric cable or apparatus which is liable to be a source of danger over a cable or apparatus used by the operator shall remain electrically charged.

All practical steps shall be taken to prevent danger to persons employed, from risk of fire or explosion or flooding. No floor or other part of the building shall be so overloaded with debris or material as to render it unsafe.

40.6.7 Safety Equipment

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All necessary personal safety equipment as considered adequate by the ENGINEER-IN-CHARGE should be made available for the use to the persons employed on the site and maintained in a condition suitable for immediate use, and the CONTRACTOR should take adequate steps to ensure proper use of equipment by those concerned.

Workers employed on mixing asphaltic materials, cement and lime mortars shall be provided with protective footwear and protective gloves.

Those engaged in white washing and mixing or stacking of cement bags or any materials which are injurious to the eye shall be provided with protective goggles.

Those engaged in welding and cutting works shall be provided with protective face and eyeshields, and gloves, etc.

Stone breakers shall be provided with protective goggles and protective clothing, and seated at sufficiently safe intervals.

When workers are employed in sewers and manholes, which are in use, the CONTRACTOR shall ensure that the manhole covers are opened and are ventilated at least for an hour before the workers are allowed into the manholes so opened which be cordoned off with suitable railing and provided with warning signals or boards to prevent accident to the public.

The following precautions should be taken on the WORK of lead painting :

- no paint containing lead or lead product shall be used except in the form of paste or readymade paint.
- suitable face masks shall be supplied for use by the workers when paint is applied in the form of spray or a surface having lead paint dry rubbed and scraped.
- Overalls shall be supplied by the CONTRACTOR to the workman and adequate facilities shall be provided to enable the working painters to wash during and on cessation of WORK.

40.6.8 Risky Places

When the WORK is done near any place where there is a risk of drowning, all necessary safety equipment shall be provided and kept ready for use and all necessary steps taken for prompt rescue of any person in danger and adequate provision should be made for prompt first aid treatment of all injuries likely to be sustained during the course of the WORK.

40.6.9 Hoisting equipment.

Use of hoisting machines and tackle including their attachments, anchorages and supports shall conform to the following standards or conditions

- * They shall be of good mechanical construction, sound materials and adequate strength and free from latent defect and shall be kept in good condition and in good working order.

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- * Every rope used in hoisting or lowering materials or as a means of suspension shall be of durable quality and adequate strength and free from latent defects.
- * Every crane driver or hoisting appliance operator shall be properly qualified and no person under the age of 21 should be in charge of any hoisting machine including any scaffolding or who give signals to the operator.
- * In case of every hoisting machine and of every chain ring hook, shackle swivel and pulley block used in hoisting or lowering or as means of suspension, the safe working load shall be ascertained by adequate means. Every hoisting machine and all gear referred to above shall be plainly marked with the safe working load and the conditions under which it is applicable shall be clearly indicated. No part of any machine or any gear referred to above in this paragraph shall be loaded beyond the safe working load except for the purpose of testing.
- * In case of machine provided by the EMPLOYER, the safe working load shall be notified by the ENGINEER-IN-CHARGE. As regards CONTRACTOR's machines, the CONTRACTOR shall notify the safe Working load of the machine to the ENGINEER-IN-CHARGE, whenever he brings any machinery to site of WORK and get it verified by the ENGINEER-IN-CHARGE concerned.

40.6.10 Electrical Equipment

Motor, Gearing, Transmission, Electric wiring and other dangerous parts of hoisting appliances shall be provided with efficient safeguards, hoisting appliance should be provided with such means as will reduce to the minimum, the risk of accidental descent of the load, adequate precautions shall be taken to reduce to the minimum the risk of any part or a suspended load becoming accidentally displaced. When workers are employed on electrical installations which are already energised, insulating mats, wearing apparel, such as gloves and boots as may be necessary shall be provided. The workers shall not wear any rings, watches and carry keys or other materials which are good conductors of electricity.

40.6.11 Maintenance of Safety Devices

All scaffolds, ladders and other safety devices mentioned or described herein shall be maintained in safe conditions and no scaffold, ladder or equipment shall be altered or removed while it is in use. Adequate washing facilities should be provided at or near place of WORK.

40.6.12 Display of Safety Instructions :

These safety provisions should be brought to the notice of all concerned by display on a prominent notice board at the place of work. The person responsible for compliance of the safety code shall be named therein by the CONTRACTOR.

40.6.13 Enforcement of Safety Regulations

Notwithstanding the above clauses 40.6.1 to 40.6.12 nothing shall exempt the CONTRACTOR from the operations of any other Act or rules in force in the Republic of India.

The WORK throughout including any temporary WORKs shall be carried on in such a manner as not to interfere in any way whatsoever with the traffic on any roads or footpaths, at the site

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or in the vicinity thereto or any existing WORK whether the property of the EMPLOYER or of a third party.

In addition to the above, the CONTRACTOR shall abide by the safety code provision as per C.P.W.D. Safety Code framed from time to time.

The CONTRACTOR shall also arrange to obtain valid gate passes for his men and equipment from the concerned authorities of the COMPLEX.

No man, material or equipment not covered by valid passes shall be permitted within the COMPLEX and no material or equipment shall be permitted to be taken out of the COMPLEX, unless authorised by the concerned authorities of the COMPLEX. The CONTRACTOR shall be held fully responsible for any or all delays, losses and damages that may result consequent on any lapses that may occur on the part of his SUBCONTRACTORS/ employees in this regard.

ARTICLE 41

CONTINUING OBLIGATIONS

The obligations contained in Articles 17, 18, 26, 27, 35 and 39 and this Article shall continue, notwithstanding completion of the WORK or termination of the CONTRACT for whatsoever reason.

ARTICLE 42

QUALITY MANAGEMENT REQUIREMENTS

42.1 It is the CONTRACTOR's obligation to ensure that the requirements of this CONTRACT are met, verifications carried out by ENGINEER-IN-CHARGE, NES, PMC during audit, surveillance and /or inspection of CONTRACTOR's quality systems do not in any way relieve CONTRACTOR of this obligation.

42.2 As a means to meet CONTRACT requirements, CONTRACTOR shall implement a QUALITY SYSTEM based on ISO 9000 series or equivalent standards. Same applies to CONTRACTOR's, SUB-SUPPLIERS and SUB-CONTRACTORS. Quality Manuals shall be submitted to ENGINEER-IN-CHARGE for review.

In specific cases this requirement may be partly or wholly waived by ENGINEER-IN-CHARGE in writing. CONTRACTOR's waiver shall be accompanied by a proposal stating how else CONTRACTOR will ensure that CONTRACT requirements will be met.

42.3 CONTRACTOR shall prepare a Quality Plan setting out the specific quality practices, resources and sequence of activities relevant to the requirements of this CONTRACT.

Quality Plan and relevant documents are to be submitted to ENGINEER-IN-CHARGE for approval with in two weeks of the award of CONTRACT.

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Approval for the Quality Plan and if applicable the detailed arrangements will be required prior to start of the WORK activity.

A preliminary Quality Plan shall be submitted during inquiry stage, accompanied by an over view of relating documents such as drawings, codes and standards, procedures, etc.

42.4 CONTRACTOR shall ensure proper functioning of the quality systems and correct implementation of the quality plan during execution of the CONTRACT.

42.5 ENGINEER-IN-CHARGE / PMC reserves the right to carry out audits, surveillance and/or inspection of the functioning of CONTRACTOR's quality system and Quality Plan.

As a part of this audit, surveillance, and/or inspection ENGINEER-IN-CHARGE, PMC shall witness specific inspections carried out by the CONTRACTOR.

42.6 Basis for this audit , surveillance and/or inspection will be provided by the Quality Plan and related documents to be submitted by the CONTRACTOR. Quality Plan and the related documents are subject to ENGINEER-IN-CHARGE, PMC's prior approval.

42.7 Audits surveillance and /or inspection of CONTRACTOR's quality system to be carried out by ENGINEER-IN-CHARGE / PMC will include CONTRACTOR's procedure for selecting SUBSUPPLIERS/ SUBCONTRACTORS.

CONTRACTOR's selection of subsuppliers/ SUBCONTRACTORS is subject to prior approval. PMC-1 shall be provided with unpriced copies of all orders to subsuppliers /SUBCONTRACTORS when so requested .

42.8 CONTRACTOR shall notify ENGINEER-IN-CHARGE of any major deficiency occurring during execution of the CONTRACT. A major deficiency constitutes a permanent deviation from the specified requirements, rendering the quality of the WORK unacceptable or indeterminate.

The notification shall be accompanied or followed by the CONTRACTOR's proposal for corrective action. Corrective action is subject to ENGINEER-IN-CHARGE prior approval. Major deficiencies and their disposition shall be recorded in the turnover documentation.

42.9 As a precondition of ACCEPTANCE OF WORK , CONTRACTOR shall provide evidence that all preceding tests and inspection have been carried out in accordance with Quality Plan and that results comply with specified requirements.

42.10 The results of final and intermediate tests and inspection shall be collected by CONTRACTOR and included in CONTRACTOR's turnover documentation.

ARTICLE 43

WARRANTIES, DEFECT LIABILITY AND LATENT DEFECTS

43.1 QUALITY OF GOODS :

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43.1.1 The CONTRACTOR warrants that the quality of goods supplied/ to be supplied under this CONTRACT shall be in accordance with the CONTRACT and the specified standards and show the utmost diligence and competence in workmanship.

43.1.2 CONTRACTOR warrants that such goods will meet the requirements of and be in conformity with all applicable laws, rules, regulations and ordinances of the Government of India, or any subdivision thereof.

43.2 EQUIPMENT/ GOODS WARRANTIES

43.2.1 The CONTRACTOR warrants that the equipment/goods under this CONTRACT will be new and of recent manufacture, of specified quality and free of all defects and all malfunctions, including latent defects, and fit for the use and for the specific purpose for which they are purchased and that they are in strict accordance with the drawings and SPECIFICATIONS and all relevant codes applicable in India.

ARTICLE 44

MEASUREMENTS, INVOICING , PAYMENTS AND BANK GUARANTEES.

44.1.1 PERFORMANCE SECURITY :

The CONTRACTOR will be required to furnish a Bank Guarantee as Security for due performance of the CONTRACT; such guarantee shall be given by a bank , which shall be approved by the EMPLOYER and which shall be authorised to do business in India. The amount of security shall be 10% of the CONTRACT PRICE. The Guarantee shall be in the form annexed hereto and shall be furnished within 15 days from the date of receipt of written acceptance and will remain in force until the satisfactory completion of the defect liability period and will be discharged thereafter .

The obtaining of such Guarantee and the cost of Guarantee to be so entered into shall be at the expense in all respects of the CONTRACTOR.

44.1.2 Interest-free mobilisation advance amounting to 10% (ten percent) of the CONTRACT PRICE will be paid to the CONTRACTOR in the manner as specified in Special Conditions of Contract by the EMPLOYER on furnishing a Bank Guarantee as stated in Article 44.1.1 above and a separate Bank Guarantee of an equivalent amount, in the form annexed from a Bank approved by the EMPLOYER. This advance shall be recovered on pro-rata basis from the Running Bills until such time the said advance is completely recovered.

The CONTRACTOR shall submit to the ENGINEER-IN-CHARGE after the end of each month Running Account Bills (R.A. Bills) showing the estimated CONTRACT VALUE of the permanent works executed upto the end of the month together with particulars of other amounts to which he is entitled under the CONTRACT (if the aggregate of such amounts is more than the amount as specified in the Special Conditions of Contract qualifying for the issue of an interim certificate). Payment upon each of the Engineers certified R.A. Bills (Interim Certificates) shall be made by

the EMPLOYER within 30 days after such certificate has been issued by the ENGINEER-IN-CHARGE.

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Retention Money at the rate of 10% of Gross Value of each R. A. Bills shall be deducted from each R.A. bill subject to a maximum of 5% of the CONTRACT PRICE. Alternatively, the CONTRACTOR can furnish a Bank Guarantee of equivalent amount in the form approved by the EMPLOYER from a scheduled Bank. The said Bank Guarantee will be released along with the Final Bill.

44.1.3 RUNNING ACCOUNT PAYMENTS TO BE REGARDED AS ADVANCE :

All Running Account (R.A.) Payments shall be regarded as payments by way of advance against the final payment only and not as payments for WORK actually done and completed and shall not preclude the requiring of bad, unsound, and imperfect or unskilled work to be removed and taken away and re-constructed or re-erected or re-considered as an admission of the due performance of the CONTRACT or any part thereof, in this respect, or of the accruing of any claim by the CONTRACTOR nor shall it conclude, determine or affect in any way the powers of the EMPLOYER under these conditions or any of them as to the final settlement and adjustment of the accounts or otherwise, or in any other way vary or affect the CONTRACT. The Final Bill shall be submitted by the CONTRACTOR within one month from the date of physical completion of the WORK otherwise the EMPLOYER's certificate of measurement and of total amount payable for the WORK done by the CONTRACTOR accordingly shall be final and binding on all parties.

44.1.4 All R.A. payments shall be subject to deduction therefrom of all dues to the EMPLOYER retention moneys and other deductions provided for in the CONTRACT, and taxes and other moneys deductible within the provisions of the Income Tax Act or any other law, rule or regulation for the time being in force.

44.1.5 The schedule of rate item(s) applied by the CONTRACTOR in respect of any WORK in his Running Account bill(s) and its acceptance hereof by the ENGINEER-IN-CHARGE in verifying the bill in respect of such WORK or otherwise in certifying any payment within the provisions aforesaid shall not be deemed to be binding upon the EMPLOYER as determining the applicable schedule of rate item(s) and shall be without prejudice to the rights of the EMPLOYER within the provisions of clause 44.6.2 hereof.

Nothing provided in the foregoing clause hereof shall anyway be deemed to confer any right or entitlement on the CONTRACTOR to receive R.A. payments, nor shall any failure or delay by the employer to make any R.A. payments as herein envisaged or otherwise afford the CONTRACTOR a ground or basis for extension of time for completion or otherwise relieve the CONTRACTOR from any of his liabilities under the contract.

44.2.0 WORK EXECUTED

CONTRACTOR is entitled to submit invoices R.A. Bills on a monthly basis for WORK completed as calculated by the progress measuring procedure indicated in clause 44.4.0 hereof, unless otherwise agreed upon.

44.3.0 EXTRA WORK

Extra WORK covered by SEWO's and supplements to the CONTRACT shall be invoiced on a monthly basis .No invoice for a SEWO or supplement to the CONTRACT may be issued until all

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WORK on that SEWO or supplement to the CONTRACT is completed and accepted by the ENGINEER-IN-CHARGE.

CONTRACTOR shall collect all completed and approved extra WORK of one particular month and issue one invoice at the end of that month . Proper reference shall be made to the relevant SEWO number and/ or supplement number.

44.4.0 MEASUREMENTS PROCEDURE

44.4.1 Within 15 days from the date of completion or testing in respect of WORK of any portion , section, group or jobsite , as the case may be , the CONTRACTOR shall cause to be jointly taken with the ENGINEER-IN-CHARGE measurements as herein provided for the WORK completed.

44.4.2 If the CONTRACTOR fails to apply to the ENGINEER-IN-CHARGE for measurements within 15 (fifteen) days from the date of completion of WORK, the ENGINEER-IN-CHARGE may, of his own initiative notify the CONTRACTOR in writing of the date(s) for measurements, and the CONTRACTOR shall be bound to present himself for the measurements on the date(s) so notified, failing which the measure as taken or caused to be taken by the ENGINEER-IN-CHARGE shall be final and binding on the CONTRACTOR.

44.5.0 All measurements shall be in metric system ,and except where expressly indicated to the contrary in the schedule of rates or other CONTRACT document, all measurements shall be taken in accordance with the procedure set forth in the schedule of rates, specifications and other CONTRACT documents, notwithstanding any provision(s) in the relative standard method of measurements or any other general or local custom to the contrary. In the absence of any noted objection as aforesaid, the CONTRACTOR shall be deemed to have accepted the relative measurements as entered in the measurement book/sheets and shall be barred from raising any objection in respect of any measurements recorded in the measurement book.

44.5.1 All measurements relative to which any objections have been noted in the measurement book shall be submitted to the ENGINEER-IN-CHARGE for his decision, and the decision of the ENGINEER-IN-CHARGE relative thereto (whether on the correct measurement to be adopted or on the mode of measurement to be adopted) shall be final and binding upon the CONTRACTOR.

44.6.0 FINAL BILL

44.6.1 On the basis of the final measurements entered in the measurement books/sheets (the measurements decided by ENGINEER-IN-CHARGE upon any objection, and/or mode of measurement decided by the ENGINEER-IN-CHARGE, upon any objection being the measurement to be adopted in such event), the CONTRACTOR shall prepare a final bill in the prescribed form with reference to the total WORK covered by the CONTRACT. Such bill to be drawn up by applying the applicable rates(s) specified in the schedule of rates to the relative measured quantity (ies).

44.6.2 In the event of there being any difference or disputes between the CONTRACTOR and the EMPLOYER as to the item(s) of the schedule of rates applicable to any particular supply, WORK or operation either the CONTRACTOR shall apply to the ENGINEER-IN-CHARGE on the applicable item(s) of the schedule of rates and the decision of the ENGINEER-IN-CHARGE on

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the applicable item(s) of the schedule rates shall be final and binding upon the CONTRACTOR. If the ENGINEER-IN-CHARGE shall be of opinion (which opinion shall be final and binding upon the CONTRACTOR) that the disputed supply WORK or operation is not covered by any item in the schedule of rates, the ENGINEER-IN-CHARGE shall determine the applicable rate(s) in respect thereof, according to the provisions of relevant clauses of Articles 36 & 38 hereof and the rate(s) by the ENGINEER-IN-CHARGE will be reviewed by the EMPLOYER. The rates determined by the EMPLOYER shall be final and binding on the CONTRACTOR.

44.6.3 If the CONTRACTOR has already prepared the final bill, the CONTRACTOR shall amend the final bill to apply the applicable item(s) of the schedule of rates and/or rate (s) as determined by the ENGINEER-IN-CHARGE and if the CONTRACTOR has not prepared the final bill, shall prepare the final bill accordingly.

44.6.4 The final bill shall, in addition to the payment entitlements arrived at according to the provisions of clause 44.6.1 hereof and associated clauses above, include herein all additional claims of the CONTRACTOR as provided for through SEWO and/or CONTRACT supplement.

44.6.5 The final bill shall be submitted in quadruplicate to the employer for payment (or in such other number of copies as the EMPLOYER may prescribe) accompanied by the completion certificate by ENGINEER-IN-CHARGE relating to the WORK covered by the final bill.

44.6.6 All money payable under the CONTRACT shall become due and payable to the CONTRACTOR only after submission to the EMPLOYER of the final bill duly certified by the ENGINEER-IN-CHARGE prepared in accordance with the provisions of clause 44.6.1 hereof and associated provisions thereunder accompanied by the completion certificate in respect of the WORK.

44.6.7 Payment of the amount(s) due on the final bill to the extent admitted by the EMPLOYER shall be made within 90 (ninety) days from due date as specified in clause 44.6.6 hereof.

44.6.8 All payments due to the CONTRACTOR on the final bill shall be subject to deduction of monies as provided for in the CONTRACT and other dues from CONTRACTOR to employer, back charges, on account payments, income tax and other taxes and duties as provided for under any law, rule or regulation having the force of law for the time being applicable.

44.7.0 **SCHEDULE OF RATES**

44.7.1 The remuneration determined as due to the CONTRACTOR by application of the schedule of rates to the final measurements as provided for in the Clause 44.6.1 hereof and associated provisions thereunder shall constitute entirely the remuneration and entitlement of the CONTRACTOR in respect of the WORK under the CONTRACT, and no further or other payment whatsoever shall be or become due or payable to the CONTRACTOR under the CONTRACT.

44.7.2 Without prejudice to the generality of the provisions of clause 44.7.1 hereof, the schedule of rates shall be deemed to include and cover:

- i) All costs, expenses, outgoings and liabilities of every nature and description whatsoever and all risks whatsoever (foreseen or unforeseen) to be taken or which may occur in or relative to the execution, completion, testing and/or handing over the WORK to the EMPLOYER and / or in or relative to acquisition, loading, unloading, transportation, storing, working upon using,

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converting, fabricating, erecting any item, equipment, material or component in or relative to the WORK and the CONTRACTOR shall be deemed to have known the nature, scope, magnitude and the extent of the WORKs and items, materials, equipment, and components required for the proper and complete execution of the WORK though the CONTRACT documents may not fully and precisely set out, describe or specify them, and the generality hereof shall not be deemed to be otherwise limited, restricted or abridged because in certain cases the CONTRACT documents or any of them shall or may and/or in other cases they shall or may not expressly state that the CONTRACTOR shall do or perform any particular labour or service, or because in certain cases the CONTRACT documents state a particular WORK, operation, supply, labour or service shall be performed /made by the CONTRACTOR at his own cost or without additional payment, compensation or charge or without entitlement of claim against the EMPLOYER or words to similar effect, and in other cases they do not, or because in cases it is stated that the same are included in or covered by the schedule of rates and in other cases it is not so stated:

- (ii) The cost of all construction plant, equipment, supply of water and power, construction of temporary roads and access, temporary work, pumps, wiring, pipes, scaffolding, shuttering and other materials, supervision, labour, insurance, fuel, stores spares, supplies, appliances and other materials, items, articles and things whatsoever (foreseen or unforeseen) to be supplied, provided or arranged by the CONTRACTOR in or relative to or in connection with the performance and/or execution of each item specified in the schedule of rates and any related or incidental WORK or operations by expression or implication involved therein or incidental thereto, complete in every respect in accordance with the CONTRACT documents, and the plans, drawings, designs, orders and /or instructions.
- (iii) The cost of all royalties, license fees or other fees, duties, penalties, levies, and damages whatsoever payable for or in respect of any protected or patented goods, materials, equipment or processes employed in or relative to the WORKs and all rents, royalties, license fees and any other fee, duty, penalty, levy, loss or damages payable on the excavation, removal or transportation of any material or acquisition or use of any right of way or other rights, licenses, permits, privileges or usage's required for or relative to the performance of the WORKs:
- (iv) Customs duties, excise duties, stamp duties and other duties, sales tax and other direct and indirect taxes, quay and port dues or charges and all other duties, taxes, fees, charges, levies, octroi and /or cesses whatsoever imposed by the Central Government or State Government or Municipal and Local Bodies or other Authorities whatsoever payable on any materials and/or WORKs supplied or performed, including materials incorporated in the WORKs or brought to site for the performance of the WORK without any entitlement to the CONTRACTOR for any exemption , remission, refund or reduction thereof.
- (v) The cost of all indemnities to the EMPLOYER and insurance premia on insurance required in terms of the CONTRACT documents or otherwise under any law, rule or regulation, and the cost of all risks of whatsoever (foreseen or unforeseen) including but not limited to risks of delay or extension of time or reduction or increase in the WORK or scope of WORK and/or cancellation of CONTRACT and/or accidents, strike, civil, commotion, war, labour trouble, third party breach, fire, lightning, inclement whether, storm, tempest, flood, earthquake and other acts of God, Government regulation or imposition or restriction, dislocation of road, rail and other transport, access or facilities, flooding of site and / or access/ roads/ approaches thereto, suspension of WORK, sabotage and other cause whatsoever.

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- (vi) The cost of all materials supplied to the EMPLOYER and/or intended for incorporation in the WORK delivered to the job site and stacked as instructed by the ENGINEER-IN-CHARGE including (but not limited to) loading, transportation and unloading thereof, waste on materials, and returns of empties.
- (vii) The cost of all escalations (foreseen and unforeseen) including but not limited to increase in Government taxes and dues on CONTRACTOR'S input, labour cost and material cost; except as provided in Article 35.4 hereinbefore.
- (viii) All supervision charges, establishment overheads, finance charges, and other costs and expenses of and charges to the CONTRACTOR, and CONTRACTOR's profit of and relative to the WORK.

44.7.3 The rates stated in the schedule of rates shall not be subject to escalation or increase on any account whatsoever.

44.7.4 Notwithstanding any provisions to the contrary in these conditions the ENGINEER-IN-CHARGE may at his absolute discretion agree to accept as complete any such defective incomplete WORK or item of WORK performed by the CONTRACTOR at variance with the specifications, subject to and upon the mutually agreed terms and conditions. Upon such acceptance in writing by the ENGINEER-IN-CHARGE, such WORK shall be deemed to have been accepted as complete (but without prejudice to any other right(s) of the EMPLOYER or obligation(s) of the CONTRACTOR relative thereto under the CONTRACT) subject to the terms and conditions of this clause.

The condition of such acceptance shall be that the WORK or item of WORK concerned shall be deemed to be a WORK not covered by the schedule of rates within the meaning of CONTRACT specification and the CONTRACTOR shall be entitled to remuneration thereof only as determined by the EMPLOYER.

44.8.0 MODE OF PAYMENT

44.8.1 Unless otherwise agreed upon, all payments made under or in terms of the CONTRACT shall be paid in Indian currency, payment to be made by online mode to contractor's authorized bank account.

44.9.0 CLAIMS BY THE CONTRACTOR

44.9.1 Should the CONTRACTOR consider that he is entitled to any extra payment or compensation in respect of the WORKs over and above the amounts due in terms of the CONTRACT as specified in clause 44.7.1 hereof or should the CONTRACTOR dispute the validity of any deductions made or threatened by the EMPLOYER from any Running Account bills or any payments due to him in terms of the CONTRACT, the CONTRACTOR shall forthwith give notice in writing of his claim in this behalf to the ENGINEER-IN-CHARGE within 7 (seven) days from the date of the issue of orders or instructions relative to any WORKs for which the

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CONTRACTOR claim such additional payment or compensation, or on the happening of other event upon which the CONTRACTOR bases such claim.

Such claims shall be settled by the EMPLOYER as per the provisions of the relevant clauses of the ARTICLE 36 and ARTICLE 38 of these terms and conditions.

44.10.0 **INVOICING**

44.10.1 Invoices when due must be made out in the name of and submitted to

ESSAR BULK TERMINAL SALAYA LIMITED on their office address

All the invoices are to be sent in 4-fold (one [1] original and three [3] copies) together with two [2] copies of all supporting documentation for reasons of verification.

Each copy must be provided with a stamp “duplicate”. The original must be signed in ink, under the words “true and correct”.

Any extra costs and/or SEWO's if applicable, authorised by ENGINEER-IN-CHARGE shall be invoiced separately.

44.10.2 The invoices must show:

- ✓ CONTRACT number and description of the WORK invoiced.
- * Invoiced amounts broken down into the applicable categories.
- * Total invoice value
- * Certified copies of measurements and test certificates
- * The indication that WORK is executed for Essar Bulk Terminal Salaya Limited.
- * Name and address of CONTRACTOR's bankers and the bank account number.
- * Invoiced amounts shall also be broken into the applicable cost account codes.
- * All invoices must be cumulative, detailing total cost claimed and paid to date.

Note: CONTRACTOR shall provide the above information for each category on a format in accordance with ENGINEER-IN-CHARGE instructions.

44.11.0 **BANK GUARANTEE**

The following instructions are applicable for the issue and maintenance of a Bank Guarantee.

44.11.1 The Guarantee must be issued by a Scheduled Indian Bank or a major International Bank, which is recognized by EMPLOYER.

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- 44.11.2 The Guarantee shall be furnished in the form of a first demand irrevocable guarantee - redeemable on demand, in the amount as stipulated.
- 44.11.3 All costs of the issue and the maintenance of the Guarantee are for the account of CONTRACTOR.
- 44.11.4 The Guarantee will be released by EMPLOYER at the written request of CONTRACTOR, but not before the expiration of the guarantee period.
- 44.11.5 EMPLOYER is entitled at his discretion, to declare the Guarantee forfeited in his favour, in total or in part, for reasons relating to any claim that EMPLOYER may have against CONTRACTOR including penalties. Any claim which employer may have against CONTRACTOR shall, however not automatically be limited to the amount of the Guarantee.
- 44.11.6 All Bank Guarantees shall be issued in favour of EMPLOYER in the formats attached.

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ANNEXURE '1' TO SCHEDULE OF RATES

FORM OF BANK GUARANTEE

FOR PERFORMANCE SECURITY

THIS UNDERTAKING made this _____ day of _____ 1995 BY
 _____ (hereinafter called the "Bank" which expression shall
 include its successors and assigns) in favour of ESSAR BULK TERMINAL SALAYA LTD.
 (hereinafter called "the EMPLOYER" which expression shall include its successors and assigns)

WHEREAS _____ (Name) _____
 (Constitution) of _____ (Address)
 (hereinafter called the "CONTRACTOR") which expression shall include its/his/their successors
 and assigns/executors, administrators, representatives and assigns) has been awarded a
 CONTRACTOR in terms, inter-alia, of the EMPLOYER's letter of Acceptance/Work Order No.
 _____ dated _____ for construction of _____
 for _____ at a total value of Rs. _____ (Rupees
 _____ only) (hereinafter called the "said Contract"
 which expression shall include any formal contract entered into subsequent thereto or in
 supercession thereof and all modifications to and amendments in the said Contract).

AND WHEREAS under the terms of the Contract the CONTRACTOR is required to furnish a
 Bank Guarantee for 10% (ten percent) of the Contract Price towards Security for due
 performance (hereinafter referred to as "Performance Security") valid till the end of the defect
 liability period as specified in the said Contract.

NOW, THEREFORE, in consideration of the promises foregoing and at the request of the
 CONTRACTOR, the Bank hereby irrevocably and unconditionally undertakes to pay to the
 EMPLOYER any and all amounts demanded by the EMPLOYER in writing from the Bank with
 reference to this undertaking upto an aggregate limit of Rs. _____ (Rupees _____
 _____ only), so as to indemnify the EMPLOYER for any liability or
 damage resulting from the defects or shortcoming of the CONTRACTOR or debts he may have
 incurred to any parties involved in works under the contract mentioned above, whether these
 defects or shortcoming or debts are actual, estimated or expected. The Bank will deliver the
 money required by the EMPLOYER immediately on first demand without delay, protest, or demur
 or proof, condition and without the necessity of previous notice or of judicial or

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administrative procedures and without it being necessary to prove to the Bank the defect or shortcomings or debts of the CONTRACTOR.

AND THE BANK DOTH HEREBY FURTHER AGREES AS FOLLOWS :

1. The EMPLOYER shall have the fullest liberty without reference to the Bank and without affecting in any way the liability of the Bank under this Undertaking, at any time and/or from time to time to anywise vary the said Contract and/or any of the terms and conditions thereof and/or to extend time for performance of the said contract or to postpone for any time and/or from time to time any of the said obligations of the CONTRACTOR and/or the rights, remedies or powers exercisable by the EMPLOYER against the CONTRACTOR and either to enforce or forbear from enforcing any of the terms and conditions of or governing the said Contract, or the securities, if any, or any of them available to the EMPLOYER and the Bank shall not be released from its liability under these presents and the liability of the Bank shall remain in full force and effect notwithstanding any exercise by the EMPLOYER of the liberty with reference to any or all the matters aforesaid or by reason of time being given to the CONTRACTOR or any other forbearance, or omission on the part of the EMPLOYER or any indulgence by the EMPLOYER to the CONTRACTOR or of any other act, matter or thing whatsoever which under any law could (but for this provision) have the effect of releasing the Bank from its liability hereunder or any part thereof.
2. It shall not be necessary for the EMPLOYER to proceed against the CONTRACTOR before proceeding against the Bank and the undertaking herein contained shall be enforceable against the Bank as principal debtor notwithstanding the existence of any security for any indebtedness of the CONTRACTOR to the EMPLOYER and notwithstanding that any such security shall at the time when claim is made against the Bank or proceedings taken against the Bank hereunder, be outstanding or unrealised.
3. As between the Bank and the EMPLOYER for the purpose of this undertaking, the amount claimed or demanded by the EMPLOYER from the Bank with reference to this undertaking shall be final and binding upon the Bank as to the amount payable by the Bank to the EMPLOYER hereunder.
4. The liability of the Bank to the EMPLOYER under this undertaking shall remain in full force and effect notwithstanding the existence of any difference or dispute between the CONTRACTOR and the EMPLOYER, the CONTRACTOR and the Bank and/or the Bank and the EMPLOYER or otherwise howsoever touching or affecting these presents or the liability of the

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CONTRACTOR to the EMPLOYER and notwithstanding the existence of any instructions or purported instructions by the CONTRACTOR or any other person to the Bank not to pay or for any cause withhold or defer payment to the EMPLOYER under these presents, with the intent that notwithstanding the existence of such difference, dispute or instruction, the Bank shall be and remain liable to make payment to the EMPLOYER in terms hereof.

5. This undertaking shall not be affected by any change in our constitution or that of the CONTRACTOR or the EMPLOYER or any irregularity in the exercise of borrowing powers by or on behalf of the CONTRACTOR.
6. This undertaking shall be valid for all claims/demands made by the EMPLOYER to or upon us upto the midnight of _____ provided that the Bank shall upon the written request of the EMPLOYER extend this guarantee by a further period of six months.
7. The Bank, doth hereby declare that Shri _____ who is the

_____ (Designation) of the Bank, is authorised to sign this undertaking on behalf of the Bank and to bind the Bank thereby.

Yours faithfully

for : _____
Name : _____
Designation : _____

Dated : _____
Place : _____

ANNEXURE 2 TO SCHEDULE OF RATES

FORM OF BANK GUARANTEE TO COVER LUMP SUM ADVANCE (MOBILISATION)

ESSAR BULK TERMINAL SALAYA LTD.
44 KM Milestone, Jamnagar-Okha Highway
Post Box No. 07,

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Taluka: Khambhaliya,
Dist: Devbhoomi Dwarka - 361305
(Gujarat) India,

Dear Sirs,

WHEREAS ESSAR BULK TERMINAL SALAYA LTD. (hereinafter called "Essar" or "EBTSL")

which expression shall include its successors and assigns, has awarded to _____ (hereinafter called "the EMPLOYER") which expression shall include its successors and assigns, the work of _____ under and in terms of a Contract as evidenced by a Letter of Acceptance of Tender No. _____ dated _____ issued by the

EMPLOYER to the CONTRACTOR (hereinafter called "the said CONTRACT") which expression shall include any formal Contract executed subsequent thereto or in supercession thereof and all amendments and/or modifications therein or in the terms of the said advance as herein stipulated.

AND WHEREAS the EMPLOYER has agreed to advance to the CONTRACTOR inter alia a sum of Rs. _____ (Rupees _____ only) (hereinafter called "the said Advance") which expression shall include any and all further amounts advanced by the EMPLOYER to the CONTRACTOR with reference to the said CONTRACT to the CONTRACTOR upon the condition, inter-alia, that the said advance shall without prejudice to any other mode of recovery available to the EMPLOYER be recoverable by the EMPLOYER by deduction as specified in the said CONTRACT from the gross accepted amount of any Running Account Bills and the Final Bill of the CONTRACTOR commencing from the first Running Account Bill of the CONTRACTOR, and meanwhile, the said advance shall be secured by an undertaking from a Bank as hereinafter appearing.

NOW THEREFORE THESE PRESENTS WITNESSETH that in consideration of the premises aforesaid, and at the request of the CONTRACTOR, we _____ (hereinafter called "the Bank") so as to bind ourselves and our successors and assigns DO HEREBY irrevocably undertake to pay the EMPLOYER at _____ forthwith on first demand in writing without protest or demur or proof or satisfaction and without reference to the CONTRACTOR any and all amount demanded from us by the EMPLOYER with reference to this Undertaking upto an aggregate limit of Rs. _____ (Rupees _____ only) .

AND THE BANK DO HEREBY FURTHER AGREE AS FOLLOWS :

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1. The EMPLOYER shall have the fullest liberty without reference to the Bank and without affecting in any way the liability of the Bank under this Undertaking, at any time and/or from time to time to anywise vary the said Contract and/or any of the terms and conditions thereof or of the said advance and/or to extend time for performance of the said contract and/or payment of the said advance in whole or part or to postpone for any time and/or from time to time any of the said obligations of the CONTRACTOR and/or the rights, remedies or powers exercisable by the EMPLOYER against the CONTRACTOR and either to enforce or forbear from enforcing any of the terms and conditions of or governing the said Contract and/or the said advance, or the securities, if any, or any of them available to the EMPLOYER and the Bank shall not be released from its liability under these presents and the liability of the Bank shall remain in full force and effect notwithstanding any exercise by the EMPLOYER of the liberty with reference to any or all the matters aforesaid or by reason of time being given to the CONTRACTOR or any other forbearance, or omission on the part of the EMPLOYER or any indulgence by the EMPLOYER to the CONTRACTOR or of any other act, matter or thing whatsoever which under any law could (but for this provision) have the effect of releasing the Bank from its liability hereunder or any part thereof.

2. It shall not be necessary for the EMPLOYER to proceed against the CONTRACTOR before proceeding against the Bank and the undertaking herein contained shall be enforceable against the Bank as principal debtor notwithstanding the existence of any security for any indebtedness of the CONTRACTOR to the EMPLOYER (including relative to the said advance or for the security deposit) and notwithstanding that any such security shall at the time when claim is made against the Bank or proceedings taken against the Bank hereunder, be outstanding or unrealised.

3. As between the Bank and the EMPLOYER for the purpose of this undertaking, the amount claimed or demanded by the EMPLOYER from the Bank with reference to this undertaking shall be final and binding upon the Bank as to the amount payable by the Bank to the EMPLOYER hereunder.

4. The liability of the Bank to the EMPLOYER under this undertaking shall remain in full force and effect notwithstanding the existence of any difference or dispute between the CONTRACTOR

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and the EMPLOYER, the CONTRACTOR and the Bank and/or the Bank and the EMPLOYER or otherwise howsoever touching or affecting these presents or the liability of the CONTRACTOR to the EMPLOYER and notwithstanding the existence of any instructions or purported instructions by the CONTRACTOR or any other person to the Bank not to pay or for any cause withhold or defer payment to the EMPLOYER under these presents, with the intent that notwithstanding the existence of such difference, dispute or instruction, the Bank shall be and remain liable to make payment to the EMPLOYER in terms hereof.

5. This undertaking shall not be affected by any change in our constitution or that of the CONTRACTOR or the EMPLOYER or any irregularity in the exercise of borrowing powers by or on behalf of the CONTRACTOR.
6. This undertaking shall be valid for all claims/demands made by the EMPLOYER to or upon us upto the midnight of _____ provided that the Bank shall upon the written request of the EMPLOYER extend this guarantee by a further period of six months.
7. The Bank, doth hereby declare that Shri _____ who is the _____ (Designation) of the Bank, is authorised to sign this undertaking on behalf of the Bank and to bind the Bank thereby.

Yours faithfully

for : _____
Name : _____
Designation : _____

Dated : _____
Place : _____

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ANNEXURE 3 TO SCHEDULE OF RATES

FORM OF BANK GUARANTEE IN LIEU OF RETENTION MONEY

M/s Essar Bulk Terminal Salaya Limited,
44 KM Milestone, Jamnagar-Okha Highway
Post Box No. 07,
Taluka: Khambhaliya,
Dist: Devbhoomi Dwarka - 361305
(Gujarat) India,

Dear Sirs,

WHEREAS Essar Bulk Terminal Salaya Limited, (hereinafter called "the EMPLOYER") which expression shall include its successors and assigns, having awarded certain work for and relative to _____ (Name of the Project/Work) to _____ (Name & Address of the CONTRACTOR) (hereinafter called "the CONTRACTOR") which expression shall include its successors and assigns, upon certain terms and conditions inter-alia mentioned in the EMPLOYER's Letter of Acceptance/ Work Order No. _____ dated _____ read with the relative Tender documents hereinafter collectively called "the Contract", which expression shall include any formal contract entered into between the EMPLOYER and the CONTRACTOR in supercession of the said Letter of Acceptance and all amendments and/or modifications in the said Contract.

AND WHEREAS in terms of the said Contract with the EMPLOYER, the EMPLOYER can retain money from the Running Bills at a rate of 10% of the Gross Amount of the Running Bill subject to a total amount of 5% of the Contract Price.

AND WHEREAS the CONTRACTOR is permitted in terms of the said Contract to be paid by the EMPLOYER the said amount of retention money against submission of a Bank Guarantee of an equivalent amount.

NOW, THEREFORE, in consideration of the promises foregoing and at the request of the CONTRACTOR, the Bank hereby irrevocably and unconditionally undertakes to pay to the EMPLOYER forthwith on first demand without protest or demur or proof or condition any and all amounts demanded by the EMPLOYER in writing from the Bank with reference to this undertaking upto an aggregate limit of Rs. _____ (Rupees _____ only)

AND THE BANK DOTH HEREBY FURTHER AGREE AS FOLLOWS :

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1. The EMPLOYER shall have the fullest liberty without reference to the Bank and without affecting in any way the liability of the Bank under this Undertaking, at any time and/or from time to time to anywise vary the said Contract and/or any of the terms and conditions thereof and/or to extend time for performance of the said contract or to postpone for any time and/or from time to time any of the said obligations of the CONTRACTOR and/or the rights, remedies or powers exercisable by the EMPLOYER against the CONTRACTOR and either to enforce or forbear from enforcing any of the terms and conditions of or governing the said Contract or the securities, if any, or any of them available to the EMPLOYER and the Bank shall not be released from its liability under these presents and the liability of the Bank shall remain in full force and effect notwithstanding any exercise by the EMPLOYER of the liberty with reference to any or all the matters aforesaid or by reason of time being given to the CONTRACTOR or any other forbearance, or omission on the part of the EMPLOYER or any indulgence by the EMPLOYER to the CONTRACTOR or of any other act, matter or thing whatsoever which under any law could (but for this provision) have the effect of releasing the Bank from its liability hereunder or any part thereof.

2. It shall not be necessary for the EMPLOYER to proceed against the CONTRACTOR before proceeding against the Bank and the undertaking herein contained shall be enforceable against the Bank as principal debtor notwithstanding the existence of any security for any indebtedness of the CONTRACTOR to the EMPLOYER and notwithstanding that any such security shall at the time when claim is made against the Bank or proceedings taken against the Bank hereunder, be outstanding or unrealised.

3. As between the Bank and the EMPLOYER for the purpose of this undertaking, the amount claimed or demanded by the EMPLOYER from the Bank with reference to this undertaking shall be final and binding upon the Bank as to the amount payable by the Bank to the EMPLOYER hereunder.

4. The liability of the Bank to the EMPLOYER under this undertaking shall remain in full force and effect notwithstanding the existence of any difference or dispute between the CONTRACTOR and the EMPLOYER, the CONTRACTOR and the Bank and/or the Bank and the EMPLOYER or otherwise howsoever touching or affecting these presents or the liability of the CONTRACTOR to the EMPLOYER and notwithstanding the existence of any instructions or

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purported instructions by the CONTRACTOR or any other person to the Bank not to pay or for any cause withhold or defer payment to the EMPLOYER under these presents, with the intent that notwithstanding the existence of such difference, dispute or instruction, the Bank shall be and remain liable to make payment to the EMPLOYER in terms hereof.

5. This undertaking shall not be affected by any change in our constitution or that of the CONTRACTOR or the EMPLOYER or any irregularity in the exercise of borrowing powers by or on behalf of the CONTRACTOR.
6. This undertaking shall be valid for all claims/demands made by the EMPLOYER to or upon us upto the midnight of _____ provided that the Bank shall upon the written request of the EMPLOYER extend this guarantee by a further period of six months.
7. The Bank, doth hereby declare that Shri _____ who is the _____ (Designation) of the Bank, is authorised to sign this undertaking on behalf of the Bank and to bind the Bank thereby.

Yours faithfully

for : _____
Name : _____
Designation : _____
Dated : _____
Place : _____

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ANNEXURE '4' TO SCHEDULE OF RATES

FORMAT OF LETTER OF WAIVER

We, (X)_____ hereby agree to fully comply with, abide by and accept without variation, deviation or reservation all technical, commercial and other conditions whatsoever of the bid/tender documents for bid/tender No. _____ and all addenda/clarifications issued by ESSAR BULK TERMINAL SALAYA LTD. including but not limited to the General Conditions of Contract, Special Conditions of Contract, Form of Contract, Instructions to Bidders, Supplementary Instruction to Bidders, Specifications and Addenda Nos. _____.

We further hereby waive, withdraw and abandon any and all deviations, variations, objections or reservations, whatsoever thereto hereto-before set out, given or indicated in our offer, correspondence, communications or otherwise with a view that the accompanying price bid/offers may be treated to conform in all respects with the terms and conditions of the said bid/tender documents.

For & on behalf of : _____

AUTHORISED SIGNATORY

- (X) Here fill in the name of the bidder. If the Bidder is a Consortium, fill in the names of all the members of the Consortium.

If the Bidder is a consortium, the Letter of Waiver must be signed by the person authorised to sign on behalf of all the members of the consortium.

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ANNEXURE '5' TO SCHEDULE OF RATES

FORM OF TENDER

(To be filled up by the Tenderer/Bidder)

Serial No.

From

To

ESSAR BULK TERMINAL SALAYA LTD.
44 KM Milestone, Jamnagar-Okha Highway
Post Box No. 07,
Taluka: Khambhaliya,
Dist: Devbhoomi Dwarka - 361305
(Gujarat) India,

Dear Sirs,

Having examined the Tender Documents consisting of the Tender Notice, General Instructions to Bidders, General Conditions of Contract, Special Conditions of Contract, Specifications, Plans (Exhibits _____ to _____), Drawings (Exhibits _____ to _____), Time Schedule, Form of Contract, Form of Tender, Form of Schedule of Rates and Addendum(s) to the Tender Documents, and having understood the provisions of the said Tender Documents and having thoroughly studied the requirements relative to the Work tendered for in connection with the _____ and having conducted a thorough study of the job site(s) involved, the site conditions, soil conditions, the climatic conditions, labour, power, water materials and equipment availability, the transport and communication facility, the availability and suitability of borrow areas, the availability of land for right of way and temporary office accommodation and quarters and all other facilities and things whatsoever necessary or relative to the formulation of the tender of the performance of work, I/we hereby submit our tender offer for the performance of proposed work in accordance with the terms and conditions and within the time mentioned in the Tender Documents at the rate(s) quoted by me/us in the accompanying Schedule of Rates based on the Form of Schedule(s) of Rates included within the Tender Documents and arrived at a total contract value of Rs. _____ (Rupees _____ only) based on an application of the rates tendered in the accompanying Schedule(s) of Rates to the relative quantities indicated in the Form Schedule(s) of Rates forming part of the Tender Documents.

If the work or any part thereof is awarded to me/us, I/we undertake to perform the work in accordance with the Contract Document as defined in the Form of Contract forming part of the

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Tender Documents and accept the terms and conditions of contract as laid down therein and undertake within 15 (fifteen) days of receipt of Acceptance of Tender to submit a Bank Guarantee for 10% of the Contract Price towards Security for due performance (Performance Security) as specified in the General Conditions of Contract, and to commence work at each job site(s) involved within 10 (ten) days of handing over the job site or any part thereof to me/us, and to sign the formal contract in terms of the form of contract forming part of Tender Documents, within 10 (ten) days of receipt of Letter of Acceptance from on or behalf of the EMPLOYER, failing which, the EMPLOYER shall be at liberty without further reference to me/us and without prejudice to any of its rights or remedies, to terminate the Contract.

I/we undertake to keep my/our/this Tender Offer open for a period of not less than 180 (one hundred and eighty) days from the scheduled date of opening of Tenders as specified in the General Instructions to Bidder forming part of the Tender Documents.

I/We have annexed to this tender the following documents :

- i. Schedule of Rates in the prescribed form.
- ii. Original Power of Attorney or other proof of authority of the person who has signed the Tender or Copy of Power of Attorney or other authority attested by a Gazetted Officer in proof of authority of the person who has signed the tender.
- iii. Original Income-Tax Clearance Certificate or copy of Income Tax Certificate duly attested by a Gazetted Officer
- iv. Original Sales Tax Clearance Certificate or copy of Sales Tax Clearance Certificate duly attested by a Gazetted Officer.
- v. Information regarding tenderer in the form annexed to the Form of Tender.
- vi. Information regarding experience of work of a comparable nature in the form annexed to Form of Tender.
- vii. Information regarding construction organisation and equipment in the form annexed to the Form of Tender.
- viii. Solvency Certificate from a Nationalised/Scheduled Bank
- ix. Set of Tender Documents, as issued duly signed.
- x. Any additional documents as listed below :
 - a.
 - b.

I/We hereby undertake that the statements made herein/information given in the Annexures referred to above are true in all respects and that in the event of any such statement or information being found to be incorrect in any particular, the same may be construed to be a

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misrepresentation entitling ESSAR BULK TERMINAL SALAYA LTD. to avoid any resultant contract.

I/We further undertake as and when called upon by ESSAR BULK TERMINAL SALAYA LTD. to produce for its inspection original(s) of the document(s) of which copies have been annexed hereto.

Yours faithfully,

(Signature of the Tenderer(s))

WITNESS :(Signature)

Name in Block Letters

Address

Occupation

Name & Designation of authorised person
signing the Tender on behalf of the Tenderer(s)